

Arun Kumar Bhadoria vs State Of Uttarakhand And Others on 15 May, 2018

Bench: Rajiv Sharma, Sharad Kumar Sharma

IN THE HIGH COURT OF UTTARAKHAND AT NAINITAL

Writ Petition (PIL) No. 48 of 2017

Arun Kumar Bhadoria

....Petitioner

Versus

State & others

....Respondents

Mr. Shakti Singh, Advocate for the petitioner.

Mr. Harendra Belwal, Brief Holder for the State/respondents.

Judgment Reserved- 11.04.2018

Date of Judgment - 15.05.2018

Coram: Hon'ble Rajiv Sharma, J.

Hon'ble Sharad Kumar Sharma, J.

Per: Hon'ble Rajiv Sharma, J.

The present petition has been filed in the nature of Public Litigation Interest (PIL) seeking better conditions of service for the Police Force in the State of Uttarakhand.

2. According to the averments made in the petition, the conditions of service of the police officers and police personnel should be made humane. The information was sought by the petitioner on various issues of conditions of service of the police officers and police personnel on 05.11.2011. The information was supplied on 16.01.2013. Petitioner made a representation to Hon'ble the Chief Minister, State of Uttarakhand, on 13.03.2013 for improving the conditions of service of the police force. The representation was also made to Hon'ble the Chief Justice of this Court on 02.08.2014.

3. Petitioner has approached the State Human Rights Commission. The Commission has passed the order on 18.12.2014. The State Human Rights Commission was informed vide letter dated 30.06.2015 that as per the directions issued by the Hon'ble Supreme Court of India, the Uttarakhand Police Act, 2007 was enacted.

4. The reply has been filed by the respondent nos.1 and 3. It is highlighted that as per Section 42 of Clause No.1 of the Uttarakhand Police Act, 2007, the police officers are supposed to work for 24 hours. It is further averred in the reply that police officers get one month's additional salary as per Govt. Order dated 09.09.1979 in lieu of not availing the Gazetted Holidays. The Non-Gazetted police officers are given causal leave for 30 days' in a year. It is further averred that to maintain law and order, the Police Department has taken the duty from the police officers for eight hours a day

approximately, which is necessary to discharge the government liabilities.

5. The State of Uttarakhand has enacted the Act called "The Uttarakhand Police Act, 2007 (hereinafter referred to as the Act, 2007)." The preamble of the Act reads as under:-

"To provide for establishment, regulations and management of the police, redefine its role, duties and its responsibilities and to enable it to function as an efficient professional effective, accountable and people friendly and responsive agency by taking into account the emerging challenges of policing, enforcement of rule of law, the concern for the security of the State and the people, good governance and human rights."

6. Section 2(p) of the Act, 2007 defines Police Officers as under:-

"Police Officer" means any officer, belonging to the Indian Police Service, Uttarakhand Police Service or Uttarakhand Police Service or Uttarakhand Police Subordinate Service and includes any other service, constituted under this Act.

7. Section 2(q) defines police personnel as under:-

"Police Personnel" means and includes such police officers and all other persons, whom the Appointing Authority is the Director General of Police or any officer subordinate to him;

8. Constitutional and Organization of the Police Force is provided under Section 3.

9. Section 4 deals with Police Ranges.

10. Section 5 provides that the administration of the Police District within the local jurisdiction of the District Magistrate, shall be vested in a Superintendent of Police under the general coordination and direction of the District Magistrate.

11. Section 7 deals with Police Stations.

12. Section 12 provides for Specialized Police Force.

13. Section 15 provides for Police Training Institutions.

14. The Administration of Police is provided under Section 21.

15. Section 29 empowers the State Government to establish a State Police Board to perform the functions, assigned to it under the provisions of Chapter IV.

16. Chapter V deals with Role, Functions and Duties of the Police.

17. Section 42 reads as under:

"Every police officer shall, for the purposes of this Act, be considered to be always on duty, and may, at any time, be employed as a police officer in any part of the State or outside it."

18. Section 50 provides for Special Provisions for Policing as under:-

"50. (1) The State Government may create, for Police Districts or Police Stations, a Special Crime Investigation Units, headed by an officer not below the rank of Sub-Inspector of Police and may also specify the offences to be investigated by such units.

(2) The Police officers posted to such units shall not be diverted to any other duty, except under very special circumstances, with the written permission of the Director General of Police.

(3) The Special Crime Investigation Units may also investigate other offences, as may be specified by general or special order of Director General of Police."

19. Chapter VIII provides for Police Accountability.

20. Chapter IX provides for welfare and grievance redressal.

21. Section 78 provides that there shall be a Police Welfare Bureau (hereinafter referred to as the 'Bureau'), which shall be headed by an officer, who shall not be below the Rank of Deputy Inspector General of Police. The functions and duties of the Bureau reads as under:-

"(a) health cure, particularly in respect of chronic and serious ailments, which include the post-retirement health care schemes for police officers and other personnel and their dependents, as are applicable to the employees of State Government;

(b) Medical assistance to police officers and other personnel, suffering injury in the course of the performance of duty, as determined by the State Government;

(c) Financial assistance to the next of kin of those dying in action, as determined by the State Government;

(d) Education and career counseling and training in appropriate skills for dependents of police officers and other personnel, as determined by the State Government; and

(e) Appropriate legal facilities, relating to bona fide discharge of duties, as determined by the State Government."

22. Section 79(1) provides that the State Government shall prescribe an Insurance Coverage for all police officers against injury, disability, or death caused while on duty.

23. The State Government may also prescribe under sub- Section 2 of Section 79, an allowance for Police Officers, posted in special wings carrying aggravated risks, as per State Government Rules.

24. Ms. Anviti Chaturvedi, in her article "Police Reforms in India", has made pertinent observations as under:-

"Police accounts for about 3% of government spending While state police forces are responsible for maintaining law and order and investigating crimes, central forces assist them with intelligence and internal security challenges (e.g., insurgencies). Expenditure on police accounts for about 3% of the central and state government budgets.

An overburdened police force State police forces had 24% vacancies (about 5.5 lakh vacancies) in January 2016. Hence, while the sanctioned police strength was 181 police per lakh persons in 2016, the actual strength was 137 police. Note that the United Nations recommended standard is 222 police per lakh persons.86% of the state police comprises of constabulary. Constables are typically promoted once during their service, and normally retire as head constables. This could weaken their incentive to perform well.

Crime per lakh population has increased by 28% over the last decade (2005-2015). However, convictions have been low. In 2015, convictions were secured in 47% of the cases registered under the Indian Penal Code, 1860. The Law Commission has observed that one of the reasons behind this is the poor quality of investigations.

Constabulary related issues Qualifications and training: The constabulary constitutes 86% of the state police forces. A constable's responsibilities are wide-ranging, and are not limited to basic tasks. For example, a constable is expected to exercise his own judgement in tasks like intelligence gathering, and surveillance work, and report to his superior officers regarding significant developments. He assists with investigations, and is also the first point of contact for the public. Therefore, a constable is expected to have some analytical and decision making capabilities, and the ability to deal with people with tact, understanding and firmness. The Padmanabhaiah Committee and the Second Administrative Reforms Commission have noted that the entry level qualifications (i.e. completion of class 10th or 12th in many states) and training of constables do not qualify them for their role. One of the recommendations made in this regard has been to raise the qualification for entry into the civil police to class 12th or graduation. It has also been recommended that constables, and the police force in general, should receive greater training in soft skills (such as communication, counselling and leadership) given they need to deal with the public regularly.

Promotions and working conditions: The Second Administrative Reforms Commission has further noted that the promotion opportunities and working conditions of constables are poor, and need to be improved. Generally a constable in India can expect only one promotion in his lifetime, and normally retires as a head constable, which weakens his incentive to perform well. This system may be contrasted with that in the United Kingdom, where police officers generally start as constables and progress through each rank in order. Further, in India sometimes superiors employ constables as orderlies to do domestic work, which erodes their morale and motivation, and takes them away from their core policing work. The Commission recommended that the orderly system be abolished across states.

Housing: Importance of providing housing to the constabulary (and generally to the police force) to improve their efficiency and incentive to accept remote postings has also been emphasised by expert bodies, such as the National Police Commission. This is because in remote and rural areas, private accommodation may not be easily available on rent. Even in metropolitan areas, rents may be prohibitively high, and adequate accommodation may not be available in the immediate vicinity of the police stations affecting their operational efficiency."

25. According to this Article, 10,248 cases were registered in the year 2015 in the State of Uttarakhand and the ratio of crime in per Lakh population was 97.2. The strength of State Police as on 01.01.2016 was 21,155. The actual appointments were 19,991. There are 1,164 vacancies. Only 6% vacancies were lying vacant. The total budget of the State of Uttarakhand for the year (2015-16) was 32,694 crores. The budget allocated for police was 1,207 crores. The police expenditure was 879 crores. It was only 2.7% of the total budget.

26. According to the Second Administrative Reforms Commission's 5th Report, the Hon'ble Chairman Mr. M. Veerappa Moily, in his preface has made following pertinent observations:-

"If real criminals in our society are left without punishment for years, because of delay in criminal justice for various reasons, it will indeed result in the multiplication of people taking to criminal acts."

Dr. A.P.J. Abdul Kalam Maintenance of public order and the rule of law is a key sovereign function of the State, as important in its own way as defending the nation from external aggression or maintaining the unity and integrity of the nation State. "It is through the rule of law", wrote Harold Laski, "that we have sought to avoid not merely the obvious dangers of unfettered executive discretion in administration, we have sought also to ensure that the citizen shall have his rights decided by a body of men whose security of tenure is safeguarded against the shifting currents of public opinion". Rule of law has been defined by Dicey as "the absolute supremacy and predominance of regular law as opposed to the influence of arbitrary power, and excludes the existence of arbitrariness, of prerogative or even wide discretionary authority on the part of government". The eminent jurist, Locke, put it succinctly, "wherever law ends, tyranny begins". By putting the lives and liberty of common citizens at risk, the possible collapse of public order and of

the rule of law has the potential to destroy the faith of citizens in its government and erode its legitimacy. Large scale violence and disruption can threaten a country's social fabric, endanger national unity and destroy prospects for economic growth and development. If there is a failure of public order, it is because of the inadequacies of the legislature, the executive and the judiciary and we need to address them holistically in order to change things for the better.

The police have always been recognised as a vital arm of the State, whether in the ancient kingdoms that ruled India or in the city states of Greece. Our colonial rulers recognised the importance of maintaining public tranquility through the use of an armed police force knowing that the tenuous grip of a few thousand British over India's teeming millions would not survive any large scale public upsurge. They did so by establishing good communication links - the railways and the postal services- and by using the strong arm of the State to put down, with the use of force, any sign of challenge to the authority of the British Crown. They therefore developed the police in India as an armed force, as an organisation oriented not to the service of the people of India but principally to maintain the authority of the Crown. It was an agency of oppression, of subjugation, used for protecting British interests and to sustain their empire. The relationship between the police and the public was one of suspicion.

At Independence, Sardar Patel, even though a witness throughout the freedom struggle to the indiscriminate use of the bullet and the lathi by the police, knew that the police and the civil services were but the instruments of the government of the day. He felt that if these services could serve a foreign power, efficiently and effectively, there was no reason why they could not be expected to serve much more efficiently and with a greater sense of dedication, their own country when free. But, he envisaged quite a different role for the police in independent India. He observed, "You have served the previous regime under different conditions. The people then had a different attitude to you, but the reasons for that attitude have now vanished. Now the time has come when you can secure the affection and regard of the people."

However, the transformation that Sardar Patel envisaged is still to be fully achieved in post independence India even after the lapse of more than half a century. As noted by the National Police Commission, "the present organisation of the police, based on the Police Act of 1861, is not suited for the current times because an authoritarian police of the imperial regime cannot function well in a democratic country." The ugly fact is that no one appears to be sincerely interested in moulding the police into what Sardar Patel envisaged. This is particularly unfortunate because new threats to internal security in the form of terrorism and organised crime have emerged while the old problems of communalism, left-wing terrorism/naxalism, parochialism and social divisions and discrimination on the basis of caste, gender, language and ethnic identity still beset us. Religion, which should be a unifying force in society, has become in India, a force for discord and violence. It should be recognised however, that with all these problems, we have still come a long way in our growth and development as a nation. At the time of Independence, many observers wrote us off as a nation state destined to failure, teetering on the edge of anarchy and disintegration, unlikely to survive for long as a united entity. We continue to defy those prophets of doom to this day, maintaining our democratic status among a sea of failed States and repelling the recurrent threats to our unity and integrity by a combination of grit and determination, resilience and fortitude.

Yet, there comes a time when a nation has to achieve and ensure long term stability in order to carry out substantial economic and social transformation. India is poised for an economic upsurge that can potentially change the lives of its people, as it gears up to tap the demographic dividend available from its youthful and talented population. For the economic boom to be sustained, the country has to move not only to a trajectory of high and sustained growth but also to high levels of social stability and public tranquility. For this to happen, governance has to go beyond the daily dose of crisis management and administration has to rise above merely a "holding of the fort".

While threats to national security from such problems as insurgent movements in the North East and the secessionist movement in Jammu and Kashmir have overarching political dimensions as well, which we propose to deal with separately in a report on Conflict Management, many other threats to internal security are exacerbated by our collective failure in providing good governance in vast swathes of the country.

Organised crime in particular has emerged as one of the most menacing challenges faced by this country. Those most successful in the commissioning of crimes are often the best organised and garner the most profit and cause the most harm. While the realm of organised crime is somewhat fluid, its reach runs deep to cover areas like money laundering, drug trafficking, illegal immigration, fraud, armed robbery etc. It is a big business and comes with huge cost.

At the same time, the incidence of prevalent social evils such as untouchability, dowry, child labour and physical and mental violence against women and children has continued unabated. These evils are both a cause and a consequence of deep rooted discriminatory practices against the vulnerable and deprived sections of our society. In particular, violence against women is complex and diverse in its manifestations. Its elimination requires a comprehensive and systematic response. Ending impunity and ensuring accountability for violence against women are crucial to prevent and reduce such violence. Often, the victims of such crimes that are rooted in the discriminatory practices of society suffer secondary victimisation at the hands of the police and it is critical therefore to sensitise police personnel to gender issues as well as other social disparities. This has to be backed by political commitment, systematic and sustained action and strong, dedicated and permanent institutional mechanisms to eliminate such offences that stem from social disparities.

The incidence of crime and violence is a reasonably good index of the efficacy or otherwise of the rule of law. The conviction rate in IPC cases which was 64.8% in 1961, has dropped to 42.4% in 2005. Rampant crime accompanied by low conviction rates attest to our failure in enforcing the rule of law and as a result, we have the phenomenon of glorification of vigilantism in our popular culture as testified by the success of the film - Rang de Basanti.

As has been stated by Dicey, "every office, from the Prime Minister to a constable is under the same responsibility for every act done without legal justifications as any other citizen". Rule of law is a fundamental feature of our Constitution. No one, not even the Home Minister in charge of the police administration and answerable to Parliament in the matter, has the power to direct the police as to how it would exercise its statutory powers, duties and discretion. At the same time, as noted by the National Police Commission in its 1981 report, what is required is creation of the awareness of direct

accountability to the people at the various levels in the police hierarchy. But this also requires an aware and vigilant citizenry, because, as pointed out by Montesquieu, "the tyranny of a prince in an oligarchy is not as dangerous to the public welfare as the apathy of a citizen in a democracy". Hence the vision for the future has to focus on the citizen as depicted in the accompanying figure (Evolution of Police - Shifting Roles and Perspectives).

In our report, we have tried to chalk out a reform agenda for the principal agencies responsible for enforcing the rule of law and maintaining public order, viz. the police and the criminal justice system. In respect of police reforms, we have tried to rise above the cacophony of the recent, rather sterile, debate on police reforms in the country in the context of the proposed amendments to the Police Act and have come out, instead, with a holistic and long term view of what needs to be done. Our focus is not on pitting one organ of the State against another but on creating new structures, based on the best international examples that would usher in an era of accountability, functional autonomy, transparency, responsiveness and professionalism in the Indian police. The emphasis is on changing the character of the police from a "force" meant to enforce the writ of the State to a "service" meant to secure the lives and liberty and constitutional freedoms of the citizens of a free and democratic country.

That is why, in the context of reforms to the police set- up in the country, we have focused on separation of and independence for, the crime investigation branch of the police from the general law and order branch under the supervision of an independent Board of Investigation. This would insulate crime investigation, which is a specialised function, both from political interference and from the day to day law and order functions that the police are saddled with. At the same time we have recommended an officer oriented civil police with initial recruitment at the level of the Assistant Sub Inspector (ASI). Autonomy for the law and order branch of the police is sought to be ensured by providing for a collegial system for appointments and transfers of police officers, a move that will also ensure security of tenure. Independent accountability mechanisms have been recommended at the state and district levels to look into complaints against the police. The traditional accountability structures such as the practice of the annual performance report of the SPs/Dy SPs being written by the Collectors and of the DGP/IGPs by the Chief Secretary should also be revived. While the ultimate accountability of the police to the elected government of the day cannot be diluted, its operational grip on day to day matters has to be relaxed in order to guarantee operational freedom and autonomy for the police to fulfill their statutory functions without fear or favour.

Most of all, the mindset of negativism has to go. Police stations should become service centres rather than power centres. They have a role which is multi-dimensional, encompassing responsive policing, preventive policing, proactive policing and developmental policing. Police stations have to register complaints immediately even on email, and training of the personnel has to be reoriented to focus not only on structural skills but also the neglected soft skills such as communication, counselling, team building and leadership. The police service is the primary agent of the criminal justice system and its role has to be to protect human rights including the particular rights of the most vulnerable victims, such as women and children. The ethos of the police should reflect accommodation for all, prompt response to emergencies, professional problem solving, courteous behaviour, process based

service dealing and public partnership in policing decisions.

Aristotle had said, "It is in justice that the ordering of society is centered". The criminal justice system is in many ways the bedrock of a democratic society since it upholds the rule of law which is a fundamental feature of a true democracy. Our criminal laws have to be sensitive to the changes in social structure and social philosophy, a reflection of contemporary social consciousness and a mirror of our values as a civilization. Delay in justice is justice denied, denial of justice is justice buried and non-accessibility of justice is justice aborted. A study undertaken by Dr. Wolfgang Kohling and the World Bank found a relationship between the quality of the judiciary and economic development based on data for Indian states. Quality was measured in terms of backlog of cases and frequency of appeals. It was found that a weak judiciary has a negative effect on social development, economic activity and on poverty and crime. Our criminal justice system, with a staggering 2.63 crore cases pending in the district and subordinate courts (though the number is less intimidating when we recognize that 29.49 lakh cases pertain to traffic challans and motor vehicle claims) is close to collapse with relatively unimportant cases clogging the judicial system. In these days when modern technology is available, delays in the courts are unpardonable. Use of e-governance tools to speed up the processing of criminal cases is imperative. The costs involved are quite insignificant when compared to the economic and social costs of the delay.

In a court of law, legal technicalities must not override the basic requirement of providing justice. In this context, wide ranging recommendations have been made on issues such as the constitution of local courts, the right to silence of the accused, the admissibility of a statement made to a police officer, provisions for enhanced penalties for those guilty of instigating and fomenting mob violence, a functional linkage between crime investigation and prosecution to improve conviction rates and facilitating the police and courts to concentrate on their core function of handling serious crimes by outsourcing enforcement of social legislations and minor offences to the concerned departments. Other relevant issues such as guidelines for sentencing so that penalties are deterrent and not discretionary, how to tackle the problem of perjury that bedevils our courts, how to use the preventive provisions of our statutes to preempt mob violence etc. have also been covered in our Report.

The criminal justice system needs to be rearranged to inspire public confidence by serving all communities fairly, to provide consistently high standards of service for the victims and the witnesses, and to bring more offences to justice through a modern and efficient justice system with rigorous enforcement so as to usher in compliance with the rule of law. The criminal justice system should be combined with modern and well run police and other services to render justice for all. It is by ensuring justice for each that we can assure peace for all.

Public order and rule of law should be embedded in the minds of the people from childhood itself. The areas of vulnerabilities will have to be identified and dealt with at a young age by means of appropriate education and by removal of discrimination and fear. This applies to all communities, majority or minorities. The mind is the breeding ground for violation of rules which graduates to conflicts and terrorism.

A new doctrine of policing and criminal justice embedded in an inclusive approach to governance, with zero tolerance towards those who violate the law is what has been propounded here. When we consider reforms in the criminal justice system or in police administration we should go for an integrated and holistic approach and mere tinkering or expediency will disrupt the reform process. The 'justice gap' between the number of crimes committed, recorded by police and the number where an offender is brought to justice in the court needs to be scrupulously bridged and the rule of law should reign in the realm. I may state, in conclusion, that the approach we have taken is to recommend "big bang" reforms that are structural, and not incremental in nature. This is not to state that their implementation cannot be incremental; it can, and probably has to be, on the basis of consensus building among our political parties and more importantly, in public opinion; but the implementation should be with a clear cut idea of what is the eventual outcome envisaged and what is the road map regarding how to get there. If this Report has sent a clear signal to those committing offences that the criminal justice system is united in ensuring their detection, correction and punishment we would have achieved our objective.

In concluding, I would like to thank Justice M. N. Venkatachaliah, former Chief Justice of India, Justice R. C. Lahoti, former Chief Justice of India, Justice Y.K. Sabharwal, former Chief Justice of India, Justice N. Venkatchala, retired Judge of the Supreme Court, Justice B.N. Srikrishna, retired Judge of the Supreme Court and presently Chairman of the Sixth Pay Commission, Shri K. Padmanabhaiah, former Union Home Secretary, Shri Prakash Singh, former DG, BSF, Shri K.T.S. Tulsi, eminent lawyer and Shri Nikhil Kumar, M.P. for sharing valuable insights with us during our discussions. I may emphasise, however, that the views expressed in this Report are of the Commission's alone."

27. His Excellency the President was pleased to set up a Commission of Inquiry to be called the second Administrative Reforms Commission (ARC) to prepare a detailed blueprint for revamping the public administration system. The Commission has made following apt observations:-

4.5 Self-esteem of Policemen 4.5.1 Nearly 87% of all police personnel are constables. The constable is the lowest level at which recruitment takes place.

The educational requirement for selection of a constable is a school leaving certificate. A constable can generally expect only one promotion in a life time and normally retires as a head constable. An average constable has little hope of becoming a Station House Officer (SHO). The statutory powers of investigation are with the Station House Officer who is usually a sub-inspector in rural police stations, and an inspector in urban police stations. As a result, constables have become 'machines' carrying out the directions of their superiors with little application of mind or initiative. Constant political interference in transfers, placements and crime investigation, long and difficult working hours, the menial duties they are often forced to perform as orderlies to senior officers, and the emphasis on brawn rather than brain in most situations tend to brutalise and dehumanise policemen. A constable devoid of dignity, lacking opportunities for vertical mobility, constantly pilloried by superiors and politicians, often derided by the public and habituated to easy recourse to violence and force cannot generally be expected to sustain his/her self-esteem or acquire the professional skills to serve the citizens. 4.5.2 Apart from the constabulary, the police force is top

heavy. There is over-crowding at the top with no real strength at middle-management levels. Recruitment in most states is at several levels - constabulary, sub-inspector, deputy superintendent of police, and the Indian Police Service. Several tiers of recruitment have diminished opportunities for promotion and the level of recruitment by the accident of an examination often determines career progression, not competence, professionalism, integrity and commitment. Lateral entry to the police is not feasible, as rigorous training, experience, expertise and knowledge of peers and colleagues are vital to the police service. Since this is a sovereign function, no agency or experience outside government prepares outsiders for police work. At the same time, incentives for performance within the police agencies are feeble.

4.5.3 The Commission is of the view that police recruitment needs to be restructured significantly in order to enhance motivation and morale, professionalism and competence of the personnel. This would require empowerment of the cutting edge functionaries and commensurate upgradation of their calibre and skills.

4.6 Professionalisation, Expertise and Infrastructure 4.6.1 Effective crime investigation, competent law and order management and useful intelligence gathering demand high standards of professionalism and adequate infrastructural and training support. Specialised training facilities are vital to hone skills and constantly upgrade them. Forensic laboratories need to be established for every district or a group of districts - at least one per 3 to 4 million population. Only such well-endowed forensic facilities will help police agencies to meet the growing challenge of combating crime in a rapidly urbanising society. Strong communications support, state-of-the-art weapons, non-lethal, modern tools for riot control and a high degree of mobility are prerequisites for modern policing. Adequate resources, technology and manpower need to be deployed on a continuing basis to meet these requirements. Like national defence, internal security and public order cannot be compromised under any circumstances, if the integrity of the State and constitutional values are to be protected. 5.7 Empowering the 'Cutting Edge' Functionaries 5.7.1 As per the Indian Police Commission of 1902, the duties prescribed for the cutting edge functionary of police, i.e. the constable, were of a mechanical type, bereft of any discretion or application of mind. Today, the constable has to interact with people, and citizens expect to be treated with respect and sensitivity to their problems. There may be occasions when a constable has to take decisions without waiting for instructions from his superiors. As the constabulary is usually the first interface of the police with the public, any reform to be meaningful has to begin at this level.

5.7.2 The National Police Commission (1977) recommended major improvements in the service conditions of constables and suggested equating a constable to a skilled worker for determining his/her pay structure. The Padmanabhaiah Committee (2000) recommended that a candidate should have passed the 10th standard for being eligible to be appointed as a constable. It also suggested two years of rigorous induction training.

5.7.3 The PADC in the draft legislative formulation has recommended:

"Rank structure at the primary levels of Civil Police

1. The rank structure of Group 'C' posts in the Civil Police, in the ascending order, shall consist of Civil Police Officer grade II, Civil Police Officer Grade I, Sub-Inspector and Inspector.

2. The direct recruitment to group 'C' posts in the Civil Police, other than in the ministerial and technical cadres, after the coming into force of this Act, shall be made only to the ranks of Civil Police Officer Grade II and Sub-Inspector:

Provided that the quota for direct recruitment to these two ranks shall be so fixed as to provide a fair balance between different ranks and prospects for promotion to eligible and meritorious officers at each level within a period of 8 to 10 years.

3. Every Civil Police Officers Grade II will undergo three years intensive training before being posted to the Service as a stipendiary cadet, and will, upon successful competition of training, have a graduation degree in police studies. Their scales of pay and conditions of service shall therefore be commensurate with ranks in other services under the state, which require similar levels of educational qualifications and training."

5.7.4 A serious and persisting malady in the civil police structure is the undue reliance on numbers - quantity, rather than the quality, of the personnel. The growing emphasis on the armed wing of the police as distinct from reliance on the civil police is an indicator of this. This distortion needs to be rectified. The allied aspect is the unthinking adherence to the lopsided police strength - majority of the total police strength in most states is composed of the armed wing and nearly 80-83% of the civil police is composed of personnel belonging to the ranks of constables and head constables. In other words, field level policing, whether urban or rural, is expected to be done through this lowest level of police.

5.7.5 The situation is further aggravated by the unsatisfactory living and working conditions and the demeaning manner in which constables are often treated by their superiors as well as politicians and the public. It is, therefore, not surprising that the self respect, morale and confidence with which they start their career, gets eroded in a very short time. Added to this is the continuation of the orderly system which reduces constables to the status of domestic servants. It would obviously be unrealistic to expect such a Force to be healthy, motivated, sensitive or citizen centric. As stated at the start of this chapter, reforms in the organisation of the police have to be the critical first step in bringing about a lasting and substantive change in police practices and behaviour, especially at lower levels. The first step would be to upgrade the skills and training to the cutting edge level of the police service so that they are appropriately engaged to handle the challenges of present day policing. Further, the removal of the orderly system would also help the constabulary focus on their prime duty, policing. The orderly system should also be immediately abolished.

5.7.6 Presently, the constables are generally matriculates. A policeman today requires higher analytical skills, more initiative, broader thinking and better decision making capabilities. With increasing awareness among the citizens the emphasis in police is shifting from 'brawn to brain'. As

a part of the reforms process, an immediate and important first step would be to restructure the present levels of recruitment to the police service on the civil police side. Instead of recruiting constables who are generally matriculates it would be better to recruit graduates at the starting point in the Civil Police and give them the nomenclature of Assistant Sub-Inspectors (ASI). 5.7.7 It is estimated that nearly 700 graduate Assistant Sub- Inspectors could be recruited annually against a vacancy of about 1000 constables, and that too without any financial burden. These officers upon completion of rigorous induction training could be assigned to various branches. These ASIs could then expect to be promoted up to the level of DySPs over a period of time. This by itself would serve as an effective motivating factor for such personnel to maintain high levels of integrity, professionalism and personal behaviour. 5.7.8 The recruitment to the Armed Police units/Battalions may continue as at present but the procedure for recruitment should be so designed as to ensure that it is totally transparent and free from any stigma of corruption, casteism, gender, communalism and similar other biases. Their training will have to be drastically refashioned and imparted on a continuing basis.

5.7.9 An important aspect in the recruitment procedure of policemen and police officers is that it should be totally objective and transparent. To inspire confidence in all sections of society it is equally important that the composition of the police force should reflect the composition of the society they are required to serve. To achieve this, police service should have fair representation from all sections of society including women. It has been observed that unless recruitment camps are organised in a widely dispersed manner, certain sections of society may hesitate to come to the traditional recruitment centres. A more proactive approach is therefore required to attract persons from all sections of the society to join the police force.

5.7.10 Recommendations:

- a. The existing system of the constabulary should be substituted with recruitment of graduates at the level of Assistant Sub-Inspector of Police (ASI).
- b. This changeover could be achieved over a period of time by stopping recruitment of constables and instead inducting an appropriate number of ASIs.
- c. Recruitment of constables would, however, continue in the Armed Police.
- d. The orderly system should be abolished with immediate effect.
- e. The procedure for recruitment of police functionaries should be totally transparent and objective. f. Affirmative action should be taken to motivate persons from different sections of society to join the police service. Recruitment campaigns should be organised to facilitate this process.

5.8 Welfare Measures for the Police 5.8.1 Improvements in police performance are closely linked to the morale of policemen, particularly of cutting edge functionaries, which in turn depends on their working environment and service conditions. Long

working hours, tough working conditions, mechanical nature of job, inadequate welfare measures and insufficient housing means that the police officials are constantly under pressure, sapping their morale and motivation. Radical improvements in the recruitment, training, emoluments, working and living conditions are essential to improve their morale, reduce their frustration and increase their professionalism. Earlier in the Report, recommendations have been made for raising the qualifications for the entry level posts in police and undertaking recruitment at a higher level than at present and for abolition of the degrading orderly system. These combined with better working conditions, improved promotion prospects and job enrichment can go a long way towards improving morale and performance. In addition, priority has to be given to welfare measures such as better education for children, medical care, housing etc. so that there is an overall improvement in their working and living conditions. 5.8.2 The National Police Commission had divided welfare measures for the police into two broad categories, the first covering items such as pension/gratuity, medical facilities, housing etc. which are to be funded entirely by the government and the second comprising miscellaneous welfare measures such as recreational and entertainment facilities, welfare centres to provide work for members of the families, financial aid for their children etc. for which it suggested the institution of a welfare fund to be partly funded by the government and partly by the police personnel themselves. 5.8.3 Time bound measures for improving satisfaction levels among police personnel by provision of adequate housing and other welfare measures are required to be taken up on an urgent basis. Provision of adequate leave, at least for one month each year, on the pattern of the armed forces would also help provide a safety valve for police personnel suffering from physical and psychological exhaustion due to trying working conditions to the District Magistrate and the State Government.

However, accountability to the District Magistrate has eroded with the passage of time. The setting up of the National Human Rights Commission and the States Human Rights Commissions has brought in some element of accountability for human rights violations.

5.9.4 The National Police Commission went into the issue of departmental accountability at great length. They concluded that effectiveness of internal accountability systems is totally dependant on the determinants used for evaluating police performance. They suggested that a comprehensive set of determinants be used for evaluating police performance at various levels. As regards complaints against the police, the National Police Commission recommended that all complaints should be dealt with by the police department. The Padmanabhaiah Committee also endorsed the view of the National Police Commission but made a distinction that where a complainant is not satisfied with the action taken by the police, he should have access to an independent Complaints Authority. The Committee recommended the Constitution of a non statutory authority to be headed by the District Magistrate with an Additional Sessions Judge, the Superintendent of Police and an eminent citizen as members.

5.9.5 The Padmanabhaiah Committee also suggested the constitution of an independent Inspectorate of Police. Attention was drawn to Her Majesty's Inspectorate of Constabulary which has been functioning very effectively in the United Kingdom and advises the Minister on the efficiency of the police force. 5.9.6 The Supreme Court in Writ Petition (Civil) No.310 of 1996, Prakash Singh and others vs. Union of India has directed the constitution of State and District Complaints Authorities. 5.9.7 The PADC has suggested that in addition to the already existing mechanisms, accountability of the police should be further ensured through the Police Performance and Accountability Commission and the District Accountability Authority. The PADC has recommended the setting up of a State Police Accountability Commission headed by a retired High Court Judge. This Commission would enquire into allegations of serious misconduct against police personnel. It has also been suggested that there should be a District Accountability Authority to monitor departmental enquiries into cases of complaints of misconduct against police personnel.

5.9.8 The Commission has analysed the systems prevailing in other countries. In the UK, the first statutory complaints system was introduced in England and Wales when the Police Act, 1964 granted Chief Officers sole responsibility for taking action on complaints against the police. The Police Act, 1976 created the Police Complaints Board (PCB), an independent body based in London with responsibility for reviewing completed investigations of complaints. The PCB did not have any investigative powers, but it could review an investigation and ask a Chief Officer to commence disciplinary proceedings, which would be heard by a disciplinary tribunal consisting of two PCB members. As the PCB was not found to be effective enough, the Police and Criminal Evidence Act, 1984 constituted the Police Complaints Authority (PCA). The PCA's structure and responsibilities were essentially the same as the PCB but the principal change was that its members could supervise police investigations into complaints. A mechanism for local resolution of less serious complaints was also provided. In May 2000, the government started consultation on a new complaints system for complaints against the police and a consultation document setting out the emerging framework - 'Complaints against the Police - Framework for a New System' - was published. This culminated in the Police Reform Act, 2002. Section 9 of the Police Reform Act, 2002 established the Independent Police Complaints Commission. Its functions include:

- "(a) the handling of complaints made about the conduct of persons serving with the police; • (b) the recording of matters from which it appears that there may have been conduct by such persons which constitutes or involves the commission of a criminal offence or behaviour justifying disciplinary proceedings; • (c) the manner in which any such complaints or any such matters as are mentioned in paragraph (b) are investigated or otherwise handled and dealt with."
- 5.9.9 The South African Police Act also established an Independent Complaints Directorate. The New York City Police has an independent Civilian Complaints Review Board. New South Wales in Australia passed the Police Integrity Commission Act in 1996. The principal objective of the Act was "to establish an independent, accountable body whose principal function is to detect, investigate and prevent police corruption and other serious police misconduct". 5.9.10 The Prime Minister Dr. Manmohan Singh, while addressing Superintendents of Police on 1st September, 2005, stated that:

"The Home Minister may also consider setting up an independent oversight mechanism to handle complaints against police misconduct."

5.9.11 In the model Act suggested by PADC, the District Accountability Authority has to be constituted to monitor departmental enquiries into cases of complaints of misconduct against police personnel. This is not quite in line with what has been directed by the Supreme Court. The Supreme Court has directed that the recommendations of the Complaint Authorities at the District and the State levels shall be binding. In its Report on Ethics in Governance, the Commission has recommended the constitution of a Local Bodies Ombudsman to look into complaints against officials of local bodies. Since the Local Bodies Ombudsman would have to investigate complaints against all the urban and rural local bodies and their officials, it may not be desirable to burden it any further. A separate District Police Complaints Authority should therefore be constituted for allegations against the police. This may be constituted for a district or a group of districts. The District Police Complaints Authority should not inquire into complaints relating to corruption which come under the purview of Lok Ayukta but should focus on other types of public grievances against the police such as non registering of complaints, general highhandedness, etc. The District Police Complaints Authority should have an eminent citizen as its Chairperson, with an eminent lawyer and a retired government servant as its members. The Chairperson and Members of the District Police Complaints Authority should be appointed by the State Government in consultation with the Chairperson, State Human Rights Commission or with the State Lok Ayukta. A government officer should be appointed as Secretary of the District Police or abuse of power against the police officers up to the rank of Deputy Superintendent of Police. It should exercise all the powers of a civil court. The Authority should be empowered to investigate any case itself or ask any other agency to investigate and submit a report. The Disciplinary Authorities should by and large accept the recommendations of the District Police Complaints Authority.

5.9.12 A State Police Complaints Authority (SPCA) should be constituted to look into cases of serious misconduct by the police. It should also look into complaints against officers of the rank of Superintendent of Police and above. The State Police Complaints Authority should have a retired High Court Judge as Chairman. Nominees of the State Government, the State Human Rights Commission, State Lok Ayukta, the State Womens' Commission, and an eminent human rights activist should be the members of the Complaints Authority. The Chairperson and the eminent human rights activist should be appointed by the State Government based on the recommendations of the State Human Rights Commission. In case the State Human Rights Commission has not been constituted, then the State Lok Ayukta may be consulted. A government officer should officiate as Secretary of the Authority. It should have the authority to ask any agency to conduct an enquiry or do the inquiry itself. It should also be empowered to enquire into or review a case which is before any District Police Complaints Authority if it feels that it is necessary to do so in public interest. The State Authority should also monitor the functioning of the District Police Complaints Authorities.

5.9.13 In order to prevent frivolous and vexatious complaints, it may be provided that if upon an enquiry it is found that the complaint was frivolous or vexatious, then the Complaints Authority should have the power to impose a reasonable fine on the complainant.

5.9.14 The Complaints Authority proposed above would be effective only if they are easily accessible to the aggrieved person. The procedure for lodging a complaint should be made very simple. Technology provides various solutions for this. The filing of complaints could be 'web-enabled'. As telephone connectivity is more widely available than internet, the Complaints Authority should have facilities for recording complaints over telephone also. This could even be automated through the use of Interactive Voice Recorder (IVR) systems. 5.9.15 Recommendations:

a. A District Police Complaints Authority should be constituted to enquire into allegations against the police within the district. The District Police Complaints Authority should have an eminent citizen as its Chairperson, with an eminent lawyer and a retired government servant as its Members. The Chairperson and Members of the District Police Complaints Authority should be appointed by the State Government in consultation with the Chairperson of the State Human Rights Commission. A government officer should be appointed as Secretary of the District Police Complaints Authority.

b. The District Police Complaints Authority should have the powers to enquire into misconduct or abuse of power against police officers up to the rank of Deputy Superintendent of Police. It should exercise all the powers of a civil court. The Authority should be empowered to investigate any case itself or ask any other agency to investigate and submit a report. The Disciplinary Authorities should normally accept the recommendations of the District Authorities. c. A State Police Complaints Authority should be constituted to look into cases of serious misconduct by the police. The State level Authority should also look into complaints against officers of the rank of Superintendent of Police and above. The State Police Complaints Authority should have a retired High Court Judge as Chairperson and nominees of the State Government, the State Human Rights Commission, the State Lok Ayukta, and the State Women Commission. An eminent human rights activist should be also be the member of the Complaints Authority. The Chairperson and the Member of the Authority (eminent human rights activist) should be appointed by the State Government based on the recommendations of the State Human Rights Commission. (In case the State Human Rights Commission has not been constituted, then the State Lok Ayukta may be consulted). A government officer should officiate as the secretary of the Authority. The Authority should have the power to ask any agency to conduct an enquiry or enquire itself. The Authority should also be empowered to enquire into or review any case of police misconduct, which is before any District Police Complaints Authority, if it finds it necessary in public interest to do so.

d. It should be provided that if upon enquiry it is found that the complaint was frivolous or vexatious, then the Authority should have the power to impose a reasonable fine on the complainant. e. The State Police Complaints Authority should also monitor the functioning of the District Police Complaints Authority. f. The Complaint Authorities should be given the powers of a civil court. It should be mandated that all complaints should be disposed of within a month.

5.10 An Independent Inspectorate of Police 5.10.1 At present, the departmental hierarchy is responsible for ensuring that the police functions efficiently. However, the system of rigorous inspection of police stations and the functioning of police officers by higher departmental officers, has, over the years, become a routine ineffective exercise.

Cases like 'Nithari' bring to the fore the weaknesses of departmental inspection mechanisms. The Commission would reiterate the need for effective internal inspections. It is however recognised that routine inspections would not lead to substantial systemic changes as needed from time to time. In some countries like the UK an independent Inspectorate of Police has been constituted to promote efficiency and effectiveness of policing and also to ensure that agreed standards are achieved and maintained. The Padmanabhaiah Committee recommended the setting up of an independent Inspectorate of Police. The Commission feels that there are advantages in setting up of an independent Inspectorate of Police in each state under the supervision of the State Police Performance and Accountability Commission. 5.10.2 At present, though the criminal laws are uniform throughout the country, there are variations in police functioning from state to state. Though some variations are necessary considering the local conditions, there should also be some common standards for functions of police, especially the quality of services provided by them. The task of identifying these common standards could be entrusted to the Bureau of Police Research and Development. These standards could then be updated regularly in the light of experience gained and adopted as the benchmark for inspections.

5.10.3 The recent incidents of death in stage-managed police encounters have once again underscored the need for a strong accountability mechanism. The proposed Complaints Authority, no doubt, would investigate any complaints in this regard, however, in order to totally eliminate this unacceptable practice, a professional accountability mechanism should also be institutionalised. Therefore all cases of deaths in encounters, irrespective of whether a complaint has been made or not, should be inquired into by the proposed Inspectorate as an ongoing exercise to ensure police accountability. The Inspectorate of Police would submit its inquiry report to the PPAC and also to the SPCA. The SPCA should use the report as an input, in case it is conducting an inquiry in to any such incident.

5.10.4 Recommendations:

a. In addition to ensuring effective departmental inspections, an Independent Inspectorate of Police may be established under the supervision of the Police Performance and Accountability Commission to carry out performance audit of police stations and other police offices through inspections and review of departmental inspections. It should render professional advice for improvement of standards in policing and also present an annual report to the Police Performance and Accountability Commission.

b. For all cases of deaths during 'encounters' the Independent Inspectorate of Police should commence an enquiry within 24 hours of the incident. The Inspectorate

should submit its report to the PPAC and the SPAC.

c. The working of the Bureau of Police Research and Development needs to be strengthened by adequate financial and professional support, so that it could function effectively as an organization for inter alia analysis of data from all parts of the country and establish standards regarding different aspects of the quality of police service.

5.11 Improvement of Forensic Science Infrastructure- Professionalisation of Investigation 5.11.1 As pointed out earlier, India, which had the first fingerprinting laboratory in the world in 1897, has proportionately fewer forensic laboratories than other developed countries. Inadequate infrastructure leads to transporting of case material to distant places, resulting in delays and giving scope for tampering, corruption, and incompetence. As a result, there is over-dependence on either oral evidence which can be unreliable (witnesses are often bought or coerced) or recourse to brutal third degree methods to extract confessions. Finally, the absence of legal counsel at the stage of crime investigation is leading to appallingly low rates of convictions. 5.11.2 Forensic science which is highly advanced in developed countries is not adequately used by our police in investigation of crime. A large number of cases are investigated based on admissions and confessions by the accused often extracted under duress. In the long run, most such cases result in acquittal besides causing violation of human rights and brutalising the police on the one hand and letting go of the criminals on the other. Optimum utilisation of the tools of forensic sciences can lead to better investigation of crimes on the one hand and minimisation of abuse of human rights on the other.

5.11.3 The Padmanabhaiah Committee went into this aspect at great length. It observed: "There are four issues relating to forensic science, which needs to be examined. The first one is how to build world class forensic science facilities. The second is how to ensure that the police use the forensic science facilities in criminal investigation. The third one is to ensure that the forensic reports achieve a reputation for integrity, impartiality and accuracy of their findings. The fourth one is to see that the forensic science reports are available very quickly". 5.11.4 A Core Group was constituted by the National Human Rights Commission to make a comprehensive examination of all aspects of forensic science services in India and to make appropriate recommendations. The Core Group, which submitted its Report in 1999, has also made several recommendations on effective use of forensic science in the criminal justice delivery system. The Core Group examined institutional, legal, personnel, financial and technical issues and made comprehensive recommendations on each one of these.

5.11.5 With regard to the organisation of the forensic science institutions, the Core Group stated that the structure within these organisations is very hierarchical, compartmentalised, insensitive, bureaucratic and rigid and that the internal culture

is influenced by the police environment. The Core Group observed that in most states, the forensic organisations are a part of the police set up and this affects their scientific work.

They are also woefully short of funds and qualified staff. All this coupled with indiscriminate references made by investigating officers has led to a large pendency at the forensic laboratories.

5.11.6 The Core Group also noted the legal lacunae in the use of forensic science services in investigation and trial. It pointed out that the CrPC and the Indian Evidence Act do not provide for mandatory collection, preservation, examination of forensic material, and for its appropriate legal status in the criminal justice process.

5.11.7 The Commission has examined the report of the Core Group and agrees with it. Based on the recommendations made by the Core Group, the Commission makes the following recommendations:

5.11.8 Recommendations:

a. There is need to set up separate National and State Forensic Science Organisations as state-of-the-art scientific organizations. At the state level these organisations should function under the supervision of the Board of Investigation. b. There is need to expand the forensic facilities and upgrade them technologically. Every district or a group of districts having 30 to 40 lakhs population should have a forensic laboratory. This should be achieved over a period of five years. Government of India should earmark funds for this purpose for assisting the states under the police modernisation scheme. All the testing laboratories should be accredited to a National Accreditation Body for maintaining quality standards. c. The syllabus of MSc Forensic Science should be continuously upgraded in linewith international trends. d. Necessary amendments should be effected in the CrPC and other laws to raise the level and scope of forensic science evidence and recognize its strength for criminal justice delivery. 5.12 Strengthening Intelligence Gathering 5.12.1 Intelligence is clearly one of the most important inputs for maintaining public order. In the states, intelligence gathering is done by the Special Branch (Intelligence Wing) of the police and the regular police stations. It is generally observed that the intelligence gathering efforts are devoted mainly to gathering information about major law and order problems, namely, likely agitations from students, labour unions, social and communal groups etc. Experience indicates that adequate attention is not paid to collection of intelligence relating to commission of crimes. It is imperative that the intelligence gathering machinery should give adequate attention to prevention of crimes also.

5.12.2 Even today, the basic source for all conceivable information remains the police station, although there are Special Branches in all the states for gathering intelligence. Indeed, collection of intelligence is the responsibility of all policemen. Information is collected through various sources - the beat constable, the traffic policemen, field

visits, interaction with officials of other departments, study of FIRs, use of informants etc. Nevertheless, due to pressure of law and order duties, such efforts remain inadequate. Pressure of work - law and order duties - has considerably slackened such efforts in intelligence gathering.

5.12.3 The system of the beat police which worked well in the past has fallen into disuse and in big cities patrolling is done mainly in vehicles. The beat police apart from giving a sense of security to the citizens, was also an important source of information. The Commission feels that this system needs to be restored and strengthened. 5.12.4 Moreover, with the constitution of specialised wings in each state, the police stations sometimes feel that collection of intelligence is no longer their responsibility. It has also been observed that often the information collected as 'intelligence' is about an event which has already taken place. The Padmanabhaiah Committee summarised its observation about intelligence as follows:

"Presently, the intelligence apparatus is not integrated with well defined hierarchical or collateral linkages. It is neither obligatory on the part of the state police to share intelligence with other intelligence gathering agencies or vice-versa, nor mandatory to act upon it with seriousness that it deserves. The existing amorphous arrangements which heavily rely on personal equations and subjective appreciation needs to be replaced by professionally worked out institutional arrangements.

"5.12.5 In recent years, substantial measures have been taken to strengthen intelligence gathering and coordination mechanisms have been set up at various levels. The Commission would however like to emphasise that the police station and its functionaries should be the prime source for gathering intelligence. Rapid advancements in technology should be fully exploited for intelligence gathering. Also a mechanism for fixing accountability of intelligence officials and other executive officials who utilise such intelligence, needs to be evolved.

5.12.6 Recommendations:

- a. The intelligence gathering machinery in the field needs to be strengthened and at the same time, made more accountable. Human intelligence should be combined with information derived from diverse sources with the focus on increased use of technology. Adequate powers should be delegated to intelligence agencies to procure/use latest technology.
- b. Intelligence agencies should develop multi-disciplinary capability by utilising services of experts in various disciplines for intelligence gathering and processing. Sufficient powers should be delegated to them to obtain such expertise.
- c. Intelligence should be such that the administration is able to use it to act in time by resorting to conflict management or by taking preventive measures. d. Instead of

monitoring public places by posting a large number of policemen it would be economical as well more effective if devices like video cameras/CCTVs are installed in such places.

e. The beat police system should be revived and strengthened.

f. Informants giving information should be protected to keep their identity secret so that they do not fear any threat to life or revenge. However, they could be given a masked identity by which they could claim their reward at an appropriate time and also continue to act as informants as the situation develops.

g. In case of major breakdown of public order, the State Police Complaints Authority should take appropriate action to fix responsibility on the police officers for lapses in acting upon intelligence or on the intelligence officers in case there has been a failure on their part.

5.13 Training of the Police

5.13.1 Recruitment to the Police is done at four levels - viz., the constables, Sub Inspectors (SI), Deputy Superintendent of Police (DySP) and Assistant Superintendent of Police (ASP).

Recruitment to the ranks of Constable, SI, DySP are done by the states concerned. Normally the constables and SIs are recruited by the Department, DySPs are recruited by the State Public Service Commission {ASPs (IPS) are recruited by the UPSC}.

5.13.2 Training has by and large been a neglected area so far as the large number of subordinate functionaries are concerned. In 1971, a Committee on Police Training was constituted. This Committee came to the conclusion that police training had been badly neglected over the years and training arrangements left much to be desired.

5.13.3 Often the State Police Training Schools where a large majority of policemen undergo training are ill equipped, starved of funds and staffed by unwilling instructors. Furthermore, training methodologies are often outdated and focus is more on discipline and regimentation while attitudinal and behavioural improvements are relegated to the background.

5.13.4 Training is important not only for building capacity but also for bringing attitudinal change. The capacity of the police to go beyond their individual economic and social background, to become aware, thinking, humanitarian and sensitive to weaker sections, can be inculcated by continuing capacity building measures. While the Commission does not wish to go into the technical details of training, it would like to emphasise its importance in police functioning.

5.13.5 Recommendations:

a. Deputation to training institutions must be made more attractive in terms of facilities and allowances so that the best talent is drawn as instructors. The Chief of Training in the state should be appointed on the recommendation of the Police Performance and Accountability Commission.

b. The instructors should be professional trainers and a balanced mix of policemen and persons from other walks of life should be adopted.

c. Each state should earmark a fixed percentage of the police budget for training purposes.

d. For each level of functionary, a calendar of training for the entire career should be laid down.

e. There should be common training programmes for police, public prosecutors and magistrates. There should also be common training programmes for police and executive magistrates.

f. Training should focus on bringing in attitudinal change in police so that they become more responsive and sensitive to citizens' needs.

g. All training programmes must conclude with an assessment of the trainees, preferably by an independent agency.

h. Modern methods of training such as case study method should be used.

i. Impact of training on the trainees should be evaluated by independent field studies and based on the findings the training should be redesigned.

j. All training programmes should include a module on gender and human rights. Training programmes should sensitise the police towards the weaker sections. 5.14 Police and Human Rights 5.14.1 Human rights issues have been placed centre stage in the last decade or so in discussions on police reforms. The General Assembly of the United Nations Organisation adopted the Universal Declaration of Human Rights on 10th December, 1948. India became a signatory to the International Convention on Economic, Social and Cultural Rights (ICESCR) and the International Convention on Civil and Political Rights (ICC PR) in 1966. The National Human Rights Commission (NHRC) was established on 12th October, 1993 as mandated by the Protection of Human Rights Act, 1993.

5.14.2 In recent years, reports of occurrence of human rights violations have become increasingly related to counter- insurgency and counter-terrorism activities of the law enforcement authorities. That terrorism has become a serious threat to national integrity, national security, rights of the citizens and social harmony cannot be over-emphasised. The National Human Rights Commission has laid stress on both aspects. It accepts that "A man in "khaki" does not shed off his basic human right to life on wearing "khaki" - violation of his human rights at the hands of terrorists is as much condemnable as the assault on human rights of other citizens"

(Para 3.13, Annual Report, 2004-2005, NHRC). But it also reiterates the view of the Supreme Court of India in D.K. Basu vs the State of West Bengal [1997(1) SCC416]: "Challenge of terrorism must be met with innovative ideas and approach. State terrorism is no answer to combat terrorism. State terrorism would provide legitimacy to 'terrorism'. That would be bad for the State, the community and above all for the Rule of Law. The State, therefore, must ensure that various agencies deployed by it for combating terrorism act within the bounds of law and not become law unto themselves. That the terrorist has violated the human rights of innocent citizens may render him liable for punishment but it cannot justify the violation of his human rights except in the manner permitted by law".

5.14.3 Other matters related to policing and human rights are concerned with custodial deaths, encounter deaths and torture. The NHRC has stated in its Annual Report for 2004-2005 that 74,401 cases were registered in the Commission during that year of which 1500 cases related to intimations of custodial deaths, 4 cases of custodial rapes and 122 related to police encounters (para 4.3).

5.14.4 The NHRC has made it very clear that "with every passing year, the evidence before the Commission mounts that there must be major police reforms in the country if the human rights situation is to be improved..." It has stressed that modernisation per se would not lead to redressal of the situation. The most important element, in its view, is insulating the investigation work of the police from 'extraneous influences' and putting a stop to arbitrary transfers of police officials which is used to weaken the capacity of the police to function without fear or favour. In fact, in the light of complaints received about police wrongdoings and their complicity in the violation of human rights, it has urged the Union and State Governments to act with determination and implement the reforms recommended by it.

5.14.5 The Commission agrees with the views of the NHRC. The Commission has already examined the issues identified by the NHRC in the foregoing paragraphs. The Commission has recommended a structure so as to insulate police from unwarranted interference; the emphasis on professional investigation and use of forensic science would dissuade investigating officers from taking recourse to coercive methods; the emphasis on training is likely to bring about an attitudinal change in police; the complaints authorities would provide an effective grievance redressal mechanism against police high handedness. All these measures would go a long way in ushering a culture of upholding human rights by all enforcement agencies. The Commission would also emphasise that the human rights of the victims and the security agencies should be given equal importance.

5.15 Community Policing 5.15.1 Community Policing has been defined as: "Community Policing is an area specific proactive process of working with the community for prevention and detection of crime, maintenance of public order and resolving local conflicts and with the objective of providing a better quality of life and sense of security".

5.15.2 According to David H Bayley, community policing has four elements:

(1) Community - based crime prevention;

(2) Patrol deployment for non emergency interaction with the public;

(3) Active solicitation of requests for service not involving criminal matters; and (4) Creation of mechanisms for grassroots feedback from the community.

5.15.3 The basic principle underlying community policing is that 'a policeman is a citizen with uniform and a citizen is a policeman without uniform'. The term 'Community Policing' has become a buzzword, but it is nothing new. It is basically getting citizens involved in creating an environment which enhances community safety and security.

5.15.4 Community policing is a philosophy in which the police and the citizens act as partners in providing security to the community and controlling crime. It involves close working between the two with police taking suggestions from people on the one hand and using the citizens as a first line of defence on the other.

5.15.5 Many states in India have taken up community policing in some form or the other. Be it 'Maithri' in Andhra Pradesh, 'Friends of Police' in Tamil Nadu, Mohalla Committees in Bhiwandi (Maharashtra), there have been several success stories from all over the country. Without going into details of each one of these, the Commission would like to lay down a few principles which should be followed in community policing:

- It should be clearly understood that community policing is a philosophy and not just a set of a few initiatives.
 - The success of community policing lies in citizens developing a feeling that they have a say in the policing of their locality and also making the community the first line of defence. Community policing should not become a mere 'public relations' exercise but should provide an effective forum for police-citizen interaction. • Interaction with people should be organised through 'community liaison groups' or citizen's committees at different levels. It should be ensured that these groups are truly representative. The idea of community policing would be a success if it is people driven rather than police driven.
 - Convergence with activities of other government departments and organisations should be attempted.
- 5.16 Gender Issues in Policing 5.16.1 In spite of the constitutional, legal and institutional provisions, women continue to be victims of crime and oppressive practices throughout their life. The National Policy on Empowerment of Women acknowledges that there still exists a wide gap between the goals enunciated in the Constitution, in legislation, policies, plans and programmes, on the one hand and the situational reality of the status of women in India on the other. It notes that major gender gaps exist in key areas affecting women empowerment and well-being, e.g. mortality rates, sex ratio and literacy. It also states that a major manifestation of gender disparity is domestic and societal violence against women. The high rate of incidence of crimes is evident from the statistics

published by the National Crime Records Bureau. Even more alarming are the lower rates of conviction in cases of offences against women than in case of other offences.

5.16.2 The Centre for Social Research undertook a study to assess how effectively police training academies in four states have incorporated gender sensitisation into the training programmes and have made a number of excellent recommendations. Briefly, the main recommendations are that gender training should be given as much time as other training and all training should have a gender component. They should also be specific to the special gender requirements of the States/regions (for example, trafficking of women in Andhra Pradesh, female foeticide and dowry deaths in large parts of North and West India, etc). It further recommended that the National Police Academy should formulate a gender policy for police training. It was highlighted that there are five essentials for a successful gender strategy for the police: education, training, awareness campaigns, research analysis and annual audits. These need to be properly evaluated and enforced. 5.16.3 Various surveys and research studies have revealed that women are often reluctant to approach the police in matters relating to violence/cruelty against them. Even when a case has been registered, low conviction rates point to deficiencies in the investigation and the prosecution. The Tenth Plan sought to address this problem in a number of ways:

- i) strict enforcement of all relevant legal provisions and speedy redressal of grievances with a special focus on violence and gender-related atrocities;
- ii) measures to prevent and punish sexual harassment at the work place, protection for women workers in the organised/un-organised sectors and strict enforcement of relevant laws such as Equal Remuneration Act, 1976 and Minimum Wages Act, 1948;
- iii) regular review of crimes against women, their incidence, prevention, investigation, detection and prosecution etc. by the Centre and States at district level;
- iv) strengthening of Women's cells in Police Stations, Women Police Stations, Family Courts, Mahila Courts, Counselling Centres, Legal Aid Centres; and
- v) Widespread dissemination of information on all aspects of legal rights, human rights and other entitlements of women.

5.16.4 Since the police is the primary agency of the criminal justice system which protects human rights, it is essential to sensitise police personnel to gender issues. A well designed gender training, which internalises responses, can play a major role in changing mindsets, biases and entrenched attitudes. 5.16.5 Another aspect of gender disparity of the criminal justice system is the low representation of women in all wings and especially the police. It is estimated that women constitute only about 2% of the civil police. This situation needs to be redressed through affirmative actions. The National Commission on Women has made various recommendations regarding the changes to be made in different laws. They have also made suggestions about sensitizing the entire criminal

justice system. While the reform of the criminal justice system as suggested in this Report would help in making investigation more professional and help the victims including women to get justice, the Commission feels that police at all levels needs to be sensitized on gender issues.

5.16.6 Recommendations:

- a. The representation of women in police at all levels should be increased through affirmative action so that they constitute about 33% of the police.
- b. Police at all levels as well as other functionaries of the criminal justice system need to be sensitised on gender issues through well structured training programmes.
- c. Citizens groups and NGOs should be encouraged to increase awareness about gender issues in society and help bring to light violence against women and also assist the police in the investigation of crimes against women.

28. According to the Department- Related Parliamentary Standing Committee on Home Affairs, in its 169th Report, "Demands for Grants (2013-14) of Ministry of Home Affairs", the State of Uttarakhand was released fund of Rs. 5.29 crores for the year 2009-10. It utilized 5.29 crores in the year 2009-10. In the year 2010-11, fund of Rs.6.35 crores was released. The entire amount was utilized. In the year 2011-12, fund of Rs. 5.75 crores was released out of which, only 4.22 crores was utilized. 1.53 crores remained unutilized, as per the utilization certificate furnished by the State of Uttarakhand to the Central Government.

29. The Government has setup Riberio Committee.

Followings recommendations were made by the Committee:-

First Report (October 1998)

1. A Security Commission should be set-up in each State consisting of the Minister in charge of Police as the Chairman, the Leader of the Opposition, the Chief Secretary of the State, a sitting or retired judge nominated by the Chief Justice of the State's High Court and three other non-political citizens of proven merit and integrity as members. These three citizens should be chosen by a committee to be set-up by the Chairman of the NHRC, which has taken much interest in the establishment of this proposed institution.
2. The name of the Commission should be "The Police Performance and Accountability Commission." (PPAC).
3. The four non-political members of this Commission excluding the Chief Secretary, should hold office for three years after which they will be replaced by persons of equal

merit chosen in the same manner.

4. The Commission will have advisory and recommendatory powers for the present. The State's DGP will be its Secretary and Convenor.

5. The Commission will oversee the performance of the Police and ensure that it is accountable to the law of the land. Its functions will be as spelt out by the NPC in para 15.48 of their report. In addition, it will ensure that no premature transfers of officers of the rank of SP and above are made without prior clearance from the Commission and that transfers are made only by the authority competent under the rules to do so.

6. Besides the Commission, a District Police Complaints Authority will be set up in each Police District as a non statutory body to examine complaints from the public of police excesses, arbitrary arrests and detention, false implications in criminal cases, custodial violence, etc and to make appropriate recommendations to the Police Performance and Accountability Commission, as well as to the Government and to the State or National Human Rights Commission. The Principal District and Sessions Judge, the Collector of the district and the SSP should constitute this authority.

7. In every State, a Police Establishment Board should be constituted with the DGP and his four senior-most officers, borne on the IPS cadre of the State but who are immediately junior to the DGP, as members to monitor all transfers, promotions, rewards and punishments as well as other service related issues. The Board should be given the legal authority to discharge its duties by amending the relevant Rules.

8. Rules should be framed by the Government on transfers, tenures, promotions, rewards and punishments and the police authorities designated to administer these rules. Any departure from these norms and rules will be brought to the notice of the PPAC.

9. The DG of Police will be selected by the Chief Minister of the State from a panel of three names prepared by a Committee headed by the Chairman of the UPSC and consisting of the Union Home Secretary, the Director of Intelligence Bureau, the State's Chief Secretary and the State's incumbent DGP. This selection committee may consult the CVC before drawing up a panel. The DGP will have fixed tenure of three years. He can be removed within the period of tenure only on the recommendations of the PPAC and for specified reasons, made in writing to the Government.

10. The investigation wing of the Police will be insulated from undue pressure if the DGP is selected in the manner prescribed above and given a tenure and also if the PPAC discharges its role of overseeing police performance and ensuring accountability. All investigating officers should be specially trained in scientific methods of investigation and not utilised for law & order duties except in small rural

police stations where it may not be possible to strictly demarcate the two important police functions. The investigating officers should not be shifted to law and order or other duties for five years at least.

Second Report (March 1999)

1. The NPC had recommended that there should be a State Security Commission at the Centre. There is no need for such an institution at the central level. In case of CBI, the Supreme Court has already given directions. The IB is an intelligence organisation and the BSF and the CRPF are para-military outfits which do not involve themselves with local politics and politicians.
2. The Central Police Committee as recommended by the NPC in its Seventh Report should be constituted.
3. The old Police Act of 1861 needs to be replaced by a new Police Act.
4. The Vohra Committee had recommended the establishment of a Nodal Cell in the Ministry of Home Affairs to deal with the problem of nexus between crime syndicates, political leaders, government functionaries and others. It is learnt that such a cell is already operative but how far it has succeeded in its endeavour is not known to our Committee.
5. The recommendations of the Law Commission about insulating the investigative functions of the police from its law and order work should be implemented urgently.
6. The recommendations of the NPC about recruitment, training and welfare of the constabulary should be implemented.
7. The minimum educational qualifications for recruitment to the level of Constable should be Higher Secondary.
8. The NPC had recommended the reorganisation of the hierarchy of the police, with an increase in the strength at middle levels of ASI/SI/Inspector to be offset by reducing numbers at the lower levels of constabulary. This would improve promotion opportunities of lower ranks. We endorse the recommendations of the NPC.
9. Every State should establish an independent Police Recruitment Board and entrust to it the task of recruitment of all non-gazetted ranks.
10. A qualitative change in the training being imparted in police training institutions is imperative to improve performance and behaviour of the police."

30. The Government has also setup Padmanabhaiah Committee. Followings recommendations were made by the Committee:-

1. There should be a greater recruitment of Sub-Inspectors instead of Constables. Recruitment to constabulary should be restricted till a teeth-to-tail ratio of 1:4 is achieved as against present ratio, which ranges from 1:7 to 1: 15 in different states.

2. Constables should be recruited young. Boys/girls, who have passed 10th Standard examination and are below 19 years in age should be eligible to appear in a common competitive qualifying examination. The successful candidates should be put through a rigorous 2-year training programme and qualify for appointment as constables only after passing a final examination.

3. The existing constabulary should be retrained to enable them to imbibe right attitudes to work. Those who do not successfully complete training should be compulsorily retired.

4. A Police Training Advisory Council should be set up at the centre and in each state to advise the Home Ministers on police training matters.

5. The eligibility criteria for recruitment to the level of Sub-

Inspectors should be 12th class pass and an upper age limit of 21 years. They should be recruited on the basis of a common written qualifying examination. The successful candidates must pass a final examination after undergoing a 3-year training programme. 50% of vacancies of Sub- Inspectors should be filled by direct recruitment and 50% reserved for promotions.

6. A constable should be classified as a 'skilled worker' in view of the skills required and risks involved in the job.

7. All promotions should be subject to completing the mandatory training programmes and passing of promotional examinations.

8. The Indian Police should adopt the philosophy of community policing. The Government of India should support this by bringing out a handbook on the subject, providing training inputs and funding pilot projects.

9. Lack of a proper tenure policy for posting of officers at different levels and arbitrary transfers have been used by politicians to control and abuse the police for their own ends. To deal with this problem, following action is required:

a) A body headed by the Chief Justice of the State High court as Chairman, State Chief Secretary and an eminent public person as members should be constituted to recommend a panel of two names for appointment to the post of the Director General

of Police.

b) A police Establishment Board, consisting of DGP and three other members of the police force selected by him, should be constituted to decide transfers of all officers of the rank of Deputy Superintendent of Police and above.

c) The minimum tenure of all officers should be 2 years.

d) Another Committee under the Chief Secretary, with Home Secretary and the DGP as members, should be constituted to hear representations from police officers of the rank of Superintendent of Police and above alleging violation of rules in the matter of postings and transfers.

10. To deal with the problem of corruption in the police, which leads to the criminalisation of the force, the committee has recommended a more serious enforcement of the code of conduct and simpler but more effective procedures for removing corrupt officers.

11. Since police work can not be organised on an 8-hour shift basis, police personnel should be given a weekly off and compulsorily required to go on earned leave every year. Holiday homes may be constructed for police personnel.

12. Investigation should be separated from law and order work. In the first phase, this separation should take place at police station level in all urban areas. An Additional Superintendent of Police should be exclusively responsible for crime and investigation work.

13. Sections 25 and 26 of the Indian Evidence Act should be deleted and confessions made to police officers of the rank of Superintendent of Police and above should be made admissible in evidence.

14. Every police station should be equipped with 'investigation kits' and every sub-division should have a mobile forensic science laboratory.

15. The police leadership, through proper manpower and career planning, improved training, effective supervision and by inculcating a sense of values amongst the members of the force, can play an important role in encouraging specialisation, promoting professionalism and increasing morale in the force.

16. There is an urgent need to encourage specialisation in various aspects of policing.

17. In each district, there should be a crime prevention cell manned by officers who have specialised in crime prevention work.

18. To deal with cyber crime effectively, police capabilities in various areas need to be developed. Capabilities of some police institutions, like the National Police Academy in the field of training, CBI in investigation, Intelligence Bureau in cyber surveillance and the National Crime Records Bureau in

cyber technology/forensics should be enhanced.

19. The present classification of offences into cognizable and non-cognizable made 150 years ago is not very relevant today. The Law Commission of India should review the entire classification and the powers of the police to investigate.

20. The concept of VIP security has been grossly, blatantly and brazenly misused. The entire concept of personal security needs a careful review and dismantling.

21. Certain offences having inter-state, national and inter- national repercussions should be declared "federal offences"

to be investigated by the Special Crimes Division of the CBI, which should function under the administrative control of the Ministry of Home Affairs.

22. Taking into account the wide ramifications of the terrorist crime, there have to be different norms regarding the burden of proof, degree of proof and the legal procedures in regard to trial of terrorist cases. There is a need for a special and a comprehensive law to fight terrorism.

23. There should be a national counter terrorism coordinator to prepare a comprehensive counter-terrorism plan and budget.

24. A statutory independent Inspectorate of Police should be set up to carry out annual as well as thematic inspections of the police force and to report to the state government whether the police force is functioning efficiently and effectively.

25. A non statutory District Police Complaints Authority (DPCA) should be set up with the District Magistrate as the Chairman and a senior Additional Sessions Judge, the District Superintendent of Police and an eminent citizen nominated by the DM as members. Investigations into public complaints against the police should in the first instance be done by the police department itself. Those who are not satisfied can approach the DPCA.

26. There should be a mandatory judicial inquiry into all cases of alleged rape of a woman or death of any person in police custody.

27. The Government of India should establish a permanent National Commission for Policing Standards to lay down norms and standards for all police forces on matters of common concern and to see that that the State Governments set up mechanisms to enforce such standards.

28. The release of central grants for modernisation or upgradation funds should be dependent upon compliance by state governments with certain basic issues, like each state having a manpower and career planning system, a transparent recruitment, promotion and transfer policy and meeting certain minimum standards for training.

29. The Police Act of 1861 should be replaced by a new Act.
30. The State Government must give high priority to the allocation of resources to the police.
31. There should be a permanent National Commission for Police Standards and (NCPs) to set standards and to see that State Governments set up mechanisms to enforce such standards.
32. There is need for comprehensive reforms in criminal justice administration. Public would soon lose faith in the criminal justice system unless the other components of the systems are also thoroughly overhauled simultaneously."
31. The National Police Commission (NPC) was constituted by the Govt. of India in 1977 with wide terms of reference covering the police organization, its role, functions, accountability etc. The Committee has submitted its eight reports as under:-

First Report:

Complaints against the police:

According to the NPC, any arrangement for inquiry into complaints against police should be acceptable both to police and public as fair and just. The Commission therefore suggested arrangements, which would include inquiries conducted by departmental authorities and those conducted by an independent authority outside the police. The Commission felt that a large number of complaints against police should be looked into and disposed off by the supervisory ranks in the police hierarchy. The Commission however recommended that a judicial inquiry should be made mandatory in the following categories of complaints against the police: alleged rape of a woman in police custody; death or grievous hurt caused while in police custody; and death of two or more persons resulting from police firing in the dispersal of unlawful assemblies.

The judicial inquiry should be held by an Additional Session's Judge nominated for this purpose in every district by State Government in consultation with the High Court. He will be designated as the District Inquiry Authority (DIA) and be assisted by an assessor. The DIA shall send the report of the inquiry to the State Government. It will be mandatory on the part of the government to publish the report and decisions taken thereon within two months of receipt of the report. The DIA shall also serve as an independent authority to oversee the ultimate disposal of complaints dealt with departmentally. To oversee the satisfactory implementation of the entire scheme, a Police Complaint Board should be set up the state level.

Second Report:

Appointment of the Criminal Justice Commission: According to the NPC, the police cannot achieve complete success in their work unless all wings of the criminal justice system operate with simultaneous efficiency. It is therefore necessary to set up a body, which would comprehensively monitor the performance of all agencies and apply corrective measures from time to time. The existing Law Commission may be enlarged to function as a Criminal Justice Commission on a statutory basis. Such arrangements at the centre should be supported by similar arrangements at the state level.

Role of Police:

The basic role of the police is to function as a law enforcement agency and render impartial service to law, without any heed to wishes, indications or desires expressed by the government which either come in conflict with or do not conform to the provisions contained in the constitution or laws. This should be spelt out in the Police Act. The police should have duly recognised service-oriented role in providing relief to people in distress situations. They should be trained and equipped to perform the service oriented functions.

Political Interference in Police Work:

In the existing set-up, the police function under the executive control of the state government. According to the Commission, the manner in which political control has been exercised over the police in this country has led to gross abuses, resulting in erosion of rule of law and loss of police credibility as a professional organisation. The threat of transfer / suspension is the most potent weapon in the hands of the politician to bend the police down to his will. The Commission recommended that the superintendence of the state government over the police should be limited to ensure that police performance is in strict accordance with law. In the performance of its tasks, the police should be subject to overall guidance from the government which should lay down broad policies for adoption in different situations. There should however be no instructions in regard to actual operations in the field. In regard to investigation work, in any case, the police are beyond any intervention by the executive or politicians. To help the state government discharge their superintending responsibility in an open manner under the framework of law, a State Secretary Commission should be setup through law in each state. The State Security Commission should: lay down broad policy guidelines and directions for the performance of preventive tasks and service-oriented functions by the police;

evaluate the performance of the State Police every year and present a report to the State Legislature; function as a forum of appeal to dispose of representations from officers regarding their being subjected to illegal orders and regarding their promotions; and generally keeping in review the functioning of the police in the state.

Statutory Tenure of Service:

The chief of police should be assured of a fixed tenure of office. The tenure may be for four years or for a period extending up to retirement, whichever is earlier. The removal of the chief of police from his post before the expiry of the tenure should require approval of the State Security Commission. Selection of Chief of Police:

The head of the police force should be selected from a panel of three IPS officers of that state cadre. The panel should be prepared by a committee headed by the Chairman of the Union Public Service Commission.

Transfer/Suspension Orders:

Police officers should be effectively protected against whimsical and mala fide transfer/suspension orders. There should be a provision in the Police Act, specifying the authorities competent to issue such orders regarding different ranks. Any such orders passed by any authority other than those specified in the Act will be rendered null and void.

Third Report:

Police and the Weaker Sections:

Some important recommendations made by the NPC about police response towards weaker sections of society are summarised below:

The NPC has recommended the establishment of special investigation cell in the police department at State level to monitor the progress of investigation of cases under the Protection of Civil Rights Act or other atrocities against Scheduled Castes and Tribes. A composite cell may be constituted at the district level under the Sub-Divisional Officer to inquire into complaints emanating from scheduled Castes/Tribes, particularly those relating to lapses in administrative measures meant for their relief. An important cause for dissatisfaction of weaker sections of society is that the police sometimes do not take cognizance of their complaints of ill treatment at the hands of upper castes on the ground that complaints are non cognizable and therefore cannot be investigated by them without orders from a magistrate. The NPC has recommended that section 155 of the Code of Criminal Procedure should be suitably amended to facilitate appropriate and effective police response to non-cognisable complaints in two categories of cases: (i) to protect a member of the weaker sections from exploitation and injustice, or (ii) to prevent a possible breach of public peace that might result from absence of effective action on complaint of a non-cognisable offence.

A comprehensive legislation should be enacted setting out the procedure for the allotment of land to landless poor. Police officers from the local police station should be associated with act of handing over possession of land to the landless and a brief

record of this should be kept in the police station records. Postings of Officers:

The postings of officers in charge of police stations should be the exclusive responsibility of the district Superintendent of Police. The Chief of Police should be exclusively responsible for selecting and posting Superintendents of Police in charge of districts.

Guidelines for Avoidance of Vexatious Arrests: Presently the powers of the arrest available to the police give ample scope for harassment and humiliation of persons, prompted by mala fide considerations. In actual practice, several persons who ought to be arrested are let free on account of political influence or other considerations, while harmless persons who need not be arrested at all are often arrested and even remanded to police custody on inadequate grounds. Some mala fide arrests get exposed on habeas corpus petitions filed in High Courts but such exposures are rare compared to the large number of unjustified arrests that take place all the time. NPC has recommended very strict guidelines for making arrests by the police, which should be strictly observed in day-to-day administration by the senior supervisory ranks. However, the State governments are yet to make firm arrangements down the line for observing these guidelines in day-to-day police work.

The NPC also recommended that sections 2(c) and 2(1) of the Code of Criminal Procedure should be amended to remove the emphasis on arrest in the definition of cognisable and non- cognisable offences and section 170 of the Code of Criminal Procedure should be amended to remove the impression that it is mandatory to make an arrest in non-bailable cases. Guidelines regarding use of Handcuffs:

The threat of putting handcuffs on persons under arrest is another source of corruption and harassment. The following guidelines must be observed:

No person shall be handcuffed who, by reason of age, sex or infirmity can be kept in custody without handcuffs. No person arrested on a bailable offence shall be handcuffed, unless for some special reasons, it is believed that he is likely to escape.

In cases under judicial custody, court's instructions should be obtained before handcuffing the accused.

Under trial prisoners and other accused persons should not be handcuffed and chained unless there is reasonable expectation that such persons will use violence or attempt to escape. The police escort must be sufficiently strong to prevent escape.

Whenever any accused is handcuffed, the fact and reasons should be stated in the Sentry Relief Book.

In no case should prisoners or accused persons, who are aged and bed-ridden in hospitals, or women or juvenile or civil prisoners, be handcuffed or fettered. Provision of Imprest Money to Police Station: The Commission noted the non-availability of any imprest money in a police station to meet expenditure on several legitimate needs of the station. It recommended that police stations should be provided with an adequate imprest amount to meet the contingent expenditure in day-to-day work. Adequate funds should be provided at station level to eliminate causes of corruption, which often engulf even the honest officers.

Fourth Report:

Registration of FIR:

Victims of crimes are sometimes turned away from a police station on the mere ground that the reported crime has occurred in the jurisdiction of some other police station and it is for the victim to go there and make his complaint. This works to the disadvantage of ignorant people and weaker sections in society. The NPC has recommended an important amendment to Section 154 Cr.P.C. which would make it incumbent on a police station to register an FIR whether or not the crime has taken place in its jurisdiction and then transfer the FIR to the concerned police station, if necessary. Examination of Witnesses.

The examination of witnesses should be conducted as far as practicable near the scene of offence or at the residence of witnesses concerned at some convenient place nearby. Statement of Witnesses:

According to existing law, a police officer is precluded from obtaining the signature of the person whose statement has been recorded by him. The Commission has recommended that the existing practice of recording in detail the statement by a witness during investigation should be done away with. In its place, the Commission has suggested an arrangement in which the investigating officer can record the facts as ascertained by him on examination of a witness. This statement of facts can be in third person in the language of the investigating officer himself and a copy of the statement should be handed over to the witness under acknowledgement. This arrangement would also act as a safeguard against the malpractice of padding of statements which the investigating officers are often accused of doing.

Restoration of Stolen Property to Victims of Crimes: Presently, properties recovered by the police during investigation or otherwise are first transferred to court custody. Their return to the rightful owner is ordered at a much later stage of the criminal proceedings. During the intervening period, there is considerable risk of damage to the property because of indifferent handling at different stages of police and court custody. Sophisticated electronic goods run a serious risk of irreparable damage. Successful detection of case does not provide any psychological satisfaction to the

victims of crime when the lost property is kept away from them for a long period without proper attention and care. NPC has recommended a change in the existing provisions in law to facilitate early return of the recovered property to the victims concerned even at the stage of investigation, protected by appropriate bonds for their safe retention and later production in court. Compounding Offences:

The NPC has recommended that the police may be empowered in law to compound offences in simple cases even at the stage of police investigation, when both parties to a dispute may themselves like to settle the matter amicably. Due safeguards must of course be provided against a forced or contrived compromise. Presently this facility is available only at the stage of trial. This amendment in law would also reduce the workload in courts.

Intimation about Arrest:

The NPC has recommended a new section 50-A in Chapter V of Cr.P.C. requiring the police to give intimation about the arrest of a person to anyone who may reasonably be named by him to avoid agonising suspense to the members of his family about his whereabouts.

Use of Third Degree Methods:

To reduce the use of third degree methods, the NPC has recommended:

Surprised visits by senior officers to police stations to detect persons held in illegal custody and subjected to ill treatment The magistrate should be required by rules to question the arrested person if he has any complaint of ill treatment by the police and in case of complaint should get him medically examined.

There should be a mandatory judicial inquiry in cases of death or grievous hurt caused while in police custody Police performance should not be evaluated on the basis of crime statistics or number of cases solved. Training institutions should develop scientific interrogation techniques and impart effective instructions to trainees in this regard.

Inspections of courts:

There is need to evolve a scheme of inspections at the level of High Court as well as Sessions Courts to ensure proper functioning of the subordinate courts. A whole time functionary of the rank of a senior District Sessions Judge who is qualified for appointment as High Court Judge may be attached to each High Court to inspect the district courts periodically. A similar functionary of the rank of Additional Sessions Judge may be entrusted with inspections at the district level. The inspecting arrangement proposed above should also ensure the availability of adequate facilities

for the witnesses and others who participate in court proceedings.

Attendance of Witnesses:

The allowances payable to witnesses for their attendance in court should be fixed on a realistic basis and their payment should be effected through a simple procedure, which should avoid delay and inconvenience.

Firth Report:

Recruitment to the Police:

Recruitment to the Police must be at two levels only- Constables and Indian Police Service. The recruitment at other levels should be eliminated in a phased manner.

Psychological Tests:

Properly developed psychological tests should form an important part of the selection procedure. The Central Government should develop the psychological tests with the help of the Ministry of Defense.

Evaluation during Training:

The Commission recommended that there should be constant evaluation of the performance, attitudes and behaviour of all recruits during training and those who are not shaping as good policemen should be weeded out.

Control of the District Magistrate:

Presently, under section 4 of the Police Act of 1861, the District Police is subject to the "general control and direction" of the District Magistrate. The NPC felt that this cannot be construed as warranting any interference in the internal management of the police force. The police should perform with full accountability to the law of the land. Any rule or regulation which unnecessarily or without purpose subordinates the police to the DM should be removed. However, there are a number of areas, which would require active cooperation of different departments and in such matters coordination by the District Magistrate will be necessary. The role of the District Magistrate as a chief coordinating authority should be recognised and respected by the police. The NPC has prescribed the areas where the District Magistrate can play his role as the coordinating authority.

Causes of Poor Police Public Relations:

Police public relations are in a very unsatisfactory state. Police partiality, corruption, brutality and failure to register cognizable offences are the most important reasons.

Police do in fact harass even those people who try to help them. Vertical Communication in Police:

Every policeman must develop an attitude of utmost courtesy and consideration towards members of the public who come to him for help. However, the manner in which police personnel at lower levels behave towards public is largely conditioned by the manner in which they are themselves treated by their own higher officers within the force. There is a simultaneous need for reform in behaviour and conduct of police officers towards one another.

Victims of Crime:

The criminal justice system shows no concern for the victim of crime at any stage. The legislation of a Criminal Injuries Compensation Act is recommended.

Need for Transparency:

All police activities, to the extent possible, should be open, except in four specific areas, which are (i) operations, (ii) intelligence on the basis of which operations are planned and conducted (iii) privacy of the individual citizen and (iv) judicial requirements.

Women Police:

The NPC has recommended that women police should be strengthened and assigned investigation work in much greater measure than at present Women police should become an integral part of the police organisation and used to deal with crimes against women and children and in tackling the problem of juvenile delinquency. They should in due course share all the duties now performed by their male counterparts.

They should be recruited in much larger numbers than at present, particularly in the ranks of Assistant Sub-inspectors and Sub-inspectors of Police.

Sixth Report:

Examinations for Promotion of Officers:

Before promotion to the ranks of Superintendent of Police, DIG and IG, all IPS officers should be required to undergo specifically designed pre-promotion courses followed by an examination and an objective selection process. Those who are not able to qualify for the post of DIG and IG even after being given two more chances should be retired from service.

Creation of Central IPS Cadres:

Two Central IPS Cadres should be constituted - one for the paramilitary organisations and the other for such organisations as IB, CBI, RAW etc. Police Commissionerate System for Major Cities: In large urban areas, crime and law and order situations develop rapidly, requiring a speedy and effective operational response from the police. This can be possible only when the police are organised to perform twin basic functions of decision making and implementation. The Commission has therefore recommended that in cities with a population of 5 lakhs and above and even in places where there may be special reasons like speedy urbanisation, industrialisation etc., the system of police commissionerate would provide more effective policing and should be introduced.

Communal Riots:

The National Police Commission felt that during communal riots, adequate interest is not taken in investigation of heinous and serious crimes. For investigation of such cases, special investigating squads under the State CID should be set up comprising officers of proven integrity and impartiality. Vigorous investigation should be followed by prosecution to ensure deterrent punishment to the offenders. Hence withdrawal from trial of cases occurring during communal riots by the State Governments with a view to promoting communal harmony often proves illusory and has to be discouraged. Reservation in the Force:

The Commission has expressed its view against reservation of vacancies in the police for minorities and other weaker sections on the basis of their share in population. The Commission felt that it would fragment the force along caste and communal lines and it goes against the fundamental police philosophy that it must rise above caste and creed and act impartially as the agent of law and order. The composition of the force should reflect the general mix of communities as it exists in the society and thereby command the confidence of different sections of the society.

Separation of investigating staff from law and order staff: The NPC has made conflicting recommendations on this subject. While in the Sixth Report, it has suggested the separation of staff at the police station level (Para 48.15), in the Seventh Report, the Commission has expressed an opinion against the bifurcation of staff on the ground that the police work cannot be put in water-tight compartments. (Para 50.22) Seventh Report:

Norms for Police Stations:

A police station in a rural area should not have jurisdiction of more than 150 kms. In urban areas, population density should be one of the main considerations. A police station should not be required to police more than 60,000 population. If it registers

more than 700 crimes annually, another police station may be created.

Police stations in cities with more than 900 cognizable IPC offices should have a Dy. SP/ ASP as SHO. Police Stations investigating over 300 IPCs per year should be headed by an Inspector of Police. The third category will consist of smaller police stations headed by Sub Inspectors. An investigating officer should not be required to investigate more than 50 - 60 IPC cases in India.

Restructuring of Civil Police Hierarchy: There should be an increase in the strength at middle levels of ASI/SI/Inspector. Increase in the strength of these ranks should be offset by reducing numbers at the lower levels of constabulary. This will provide large number of investigating officers and improve promotional opportunities for the lower ranks.

Management of the Police Force:

The internal management of the police force in the state should be entirely under the purview of the chief of police. The powers of the heads of the state police forces in respect of personnel and financial management and to provide infra-structural facilities for the growth of the police should be enhanced. Central Law for Armed Police Forces:

There should be a central enactment to ensure uniformity in composition, officering pattern, training, discipline and efficiency of the state armed police battalions. Establishment of a Central Police Committee: A Central Police Committee to look after the functions of consultancy and monitoring be created because an expert agency is required by the Central Government and the State Security Commissions to advise them on matters relating to:

- (i) police Organisation and police reforms of a general nature;
- (ii) central grants and loans to the State Police Forces for their modernisation and development; and
- (iii) budgetary allotments to State Police Forces.

The Committee could also make a general evaluation of policing in the country and provide expertise to the State Security Commissions for their own evaluation of they so require. Establishment of an All India Police Institute: An all India Police Institute on the lines of similar professional institutions existing for Engineers, Chartered Accountants and other professionals be created. This Institute, when established, should be kept under the proposed Central Police Committee. Eighth Report:

Police Accountability:

There should be continuous monitoring of the performance of the police forces in the country. The State Security Commission should have an independent cell to evaluate police performance. The annual administration report of the head of the police force and assessment report of the Central Police Committee will provide additional material to the State Security Commission to prepare a final report on the performance of the state police to be placed before the State Legislature. The police functionaries individually as well as in groups should be sensitised to the idea of accountability to the people. Withdrawal of Protection:

Sections 132 and 197 of the Cr. P.C. 1973 provide protection to various categories of public servants against any prosecution brought against them relating to performance of official duties.

The protection available to the police officers under these sections should be withdrawn so that the private complainant is free to press his complaint against police official for a judicial pronouncement without there being a provision to obtain prior permission of the competent authority for such prosecution. Enactment of a Model Police Act:

The Police Act of 1861 should be replaced by a new Police Act, which not only changes the system of superintendence and control over the police but also enlarges the role of the police to make it function as an agency which promotes the rule of law in the country and renders impartial service to the community. Response to NPC's Recommendations:

The major recommendations of the NPC have remained unimplemented. There is a deep seated and strong resistance to the idea of police reforms. Politicians and bureaucrats have developed a great vested interest in retaining control and superintendence over the police organisation. Indicative of the deeply entrenched resistance to police reform is the fact that a letter written on the subject in April 1997 by Shri Indrajit Gupta, the then Union Home Minister to the Chief Ministers of all States exhorting them to rise above narrow partisan or political considerations and introduce police reforms on the lines recommended by the NPC failed to produce even a single response.

Within the police establishment also, there are those who are content to retain the status quo. Closely associated with powerful interests, they acquiesce in and allow the system to continue. The existing system is unacceptable. It has resulted in subverting the rule of law and in obstructing the growth of a healthy and professional system of policing. It must change."

32. The State Government vide Government Order No.-1010/XX-1/2012-2(22), Dated 13.04.2012, has constituted One-member State Police Reforms Commission. It has also made various recommendations qua welfare of police officers, personnel and their redressal. It is highlighted that

the police administration should be liberal in granting leaves by applying rotational system. It should be ensured that they get proper rest. They are provided proper accommodation. There should be at least three promotions in their career to remove stagnation. They should be provided with medical aid. The standard operating system should be prepared. The Police Welfare Corpus be created. The endeavor should be made to keep the morale of the police force high to enable them to discharge their duties.

33. The Bureau of Police Research & Development, Govt. of India has sponsored "National Requirement of Manpower for 8-Hour Shifts in Police Stations of India (hereinafter referred to as the BPR&D), under the leadership of Mr. Kamal Kumar, IPS (Retd.) with following objectives:-

I. Identification of legal provisions for 8 hours working shift, II. An assessment of the present status as to the actual number of hours of duty being performed by police personnel in different regions/areas (both urban and rural) in the country, III. Examination of the existing compensation system for working beyond 8 hours and desirability of the same, IV. Identification of duties and factors which warrant police personnel necessarily working beyond 8 hours, V. Identification of force multipliers and extent of their application to substitute manpower, VI. Identification of functions that can be outsourced and cost effectiveness thereof, (vii) Examination of the norms for police station manpower in different regions / areas (urban/rural) to perform all the duties cast upon the police, VII. Estimation of extra manpower needed for introduction of 8 hours shifts in the police station functioning, VIII. To make necessary recommendations.

34. The International Scenario of the Working Hours of Police Station Personnel has been discussed in Chapter

4. It reads as under:-

Policing systems, the world over, were developed on the basic premise that the police work requires round-the-clock functioning. In most countries, earlier on this used to be complied with an irregular work hour regime. However, in recent times, the emerging concerns of employee welfare, alongside need for efficiency in operations have necessitated a relook at the working hour arrangement for police personnel. Progressive police organizations in different parts of the world now follow shift system of functioning.

Police forces in the developed world, thus, have their police station personnel working in shifts. The systems prevailing include: shifts of 8-hour, 9-hour, 10-hour, 12-hour, or their variants, with limits to maximum work-time on a weekly or monthly basis. Countries also undertake reviews of their shift systems, from time to time to bring about an equilibrium as to the needs for good policing, work-life balance for employees, and also to economizing the overtime payments. A few examples of shift systems in vogue in some police jurisdictions are briefly described below.

In the United Kingdom most police departments follow the European Working Time Directive. The specific shift schedules operated by them vary from jurisdiction to jurisdiction, in overall conformity with these directives. For example, the Kent Police Department has both 8-hour and 10- hour shifts embedded in their system, with the shift duration alternating every week in a 4-week cycle. Kent Police regulations stipulate a limit on average weekly working time of 48 hours, along with a maximum daily rest period of 11 consecutive hours in every 24 hours. Minimum weekly rest of 24 consecutive hours in each seven-day period or 48 consecutive hours over a 14-day period are also provided for in the regulations.

In the case of Essex Police, provisions are made in the regulations that staff shall not be required to work in excess of an average of 48 hours in a week in usual circumstances. These working hours include normal duty hours, as well as any overtime work, including work performed on a rest day or public holiday, or during off-duty hours. Personnel are also entitled to a rest period of not less than 11 hours in between two days of duty, and shall not be required to work for more than seven days between each rest period of a minimum of 24 hours. The Staffordshire Police follow a shift pattern of 2 morning-shifts, 2 day-shifts and 2 night-shifts, followed by 4 rest days.¹⁰ Some police departments follow the so-called 'Regulation Shift Pattern', under which personnel work through a rotation of eight hour shifts (0600-1400 hrs., 1400-2200 hrs., 2200-0600 hrs.). In Scotland, Regulation 22 of the Scottish Police Federation prescribes guidelines for the normal periods of duty of police personnel, the periods allowed for rest and refreshment, variable shift arrangements, etc. The National Police Improvement Agency of the U.K. has evolved, as part of its National Modernisation Programme, an exhaustive 'Shift Pattern Review Toolkit', for providing guidance to those involved in review, evaluation, design and implementation of shift systems for police personnel.

In Canada, the Ottawa Shift System is commonly used by police stations. Originally developed in 1981, the system works on a three-shift basis - a 10-hour day shift, a 10-hour evening shift and an 8½ -hour night shift, on a 35-day cycle. The working hours of shift are calculated on the basis of annualized hours, and not on monthly or weekly hour basis. The system enables police personnel to enjoy increased rest days resulting from longer shifts.

Various police departments in the United States of America follow a 40-hour work week. The shift patterns and durations differ from one department to another. The work schedule of New York Police consists of shifts of 8 hours and 35 minutes, arranged in a 15-day cycle of 5 work days - 2 off days, followed by 5 work days - 3 off days. The cycle is rotated every 15 days. During their shifts, personnel are given one hour meal time and two twenty-minute breaks. The personnel of Georgia City Police currently work in 12-hour shifts, which are switched every 8 weeks. The County Police in Georgia work in 10-hour shifts. In Seattle Police Department, patrol officers work on a rotating schedule of 9-hour 'watches', in a 6- day cycle. They work for four days in a row, in the 6-day cycle followed by two off days. The Lincoln Police Department, Nebraska, has the traditional 8-hour shift schedule, coupled with some instances of 10-hour shifts. They also introduced 12-hour shifts on a trial basis, some time back. The Middletown Police in Rhode Islands observes a 12-hour shift schedule in a 14-day cycle: 2 days off - 3 days work, 2 days off

- 2 days work, 3 days off - 2 days work.

In Australia, Victoria Police had been following a 12- hour shift system till 2009, when they switched back to 8-hour shift schedule.

In South Africa, prior to 1994, the SAPS followed an 8- hour shift pattern, consisting of three shifts (0600-1400 hours, 1400-2200 hours, 2200-0600 hours) in various cycles. In 1994, this was replaced by a 12-hour shift system. In May 2002, the Commissioner, SAPS and the employees' unions concluded a collective agreement, which stipulated "the ordinary working hours of an employee shall not be more than 40 hours per week. The daily hours of work shall not be more than 8 hours per day for those performing administrative duties. Others will perform duty in either 8-hour or 12-hour shifts. Employees performing 8-hour shifts would do so five times a week. Those rendering services on 12-hour shifts would work on average of three or four times per eight-day cycle". This arrangement continues to be in vogue.

In Japan, the Police Kobans in Tokyo Metropolitan Police Department work in four daily shifts, while in other prefectures they work in three shifts.

In Hong Kong, police officers work in three shifts a day. The above picture about the prevalence of shift systems is just illustrative.

Indian scenario Long duty hours Police station personnel in India have unduly long and irregular duty hours. A study conducted by the National Productivity Council in 1977, at the behest of the National Police Commission, had established that the normal working hours of a subordinate police officer on public order and crime investigation duty ranged between 10 and 16 hours per day, seven days a week. A computerized survey undertaken by Tamil Nadu Police also showed that constables worked on an average 14 hours a day without respite. The extensive survey conducted as part of the current study has brought out that the deplorable state of inordinately long working hours for police station personnel, coupled with denials of weekly offs to them, and the often recalls to duty during their off days/off time continues to widely prevail in the country. The situation is indeed serious and needs urgent attention.

Duties and factors warranting more than 8 hours of work Focus Group Discussions (FGDs), held with cross- sections of police station functionaries at cutting edge level (Constables to SHOs) in the course of this study, pointed to several factors that warrant police station personnel to work beyond the usual norm of 8 hours' duty in a day. Such factors are indeed numerous and important among them are briefly discussed below.

Ever-increasing law & order related duties Growth of democratic processes in the Indian society has led to the increasing agitational activities which manifest as rallies, processions, dharnas, 'rasta roko', 'rail roko', etc., at the drop of a hat. At the same time, an increasing frequency and exuberance in organizing fairs and festivals is also noticeable. Over and above all this, police have to provide bandobust for activities as innocuous as conducting examinations in colleges and other educational institutions. In fact, there are quite a few new and varied responsibilities the police in India have to

shoulder now, which by no reckoning fall in the realm of normal policing. Failure of functioning of other wings of the administration also adds to the responsibilities of the police in the name of law and order maintenance. Some illustrative examples from Andhra Pradesh, for instance, include ensuring the availability of adequate and genuine seeds and fertilizers during the sowing season; enquiry regarding 'fake students' residing in college hostels; organizing garbage removal when it causes tension in localities, and so on. There were also days when Government liquor was sold from police stations in Telangana region of Andhra Pradesh, as naxalites had given a call for its boycott. Thus, ever-growing magnitude of law and order work, without commensurate augmentation of staff strength in police stations, inevitably leads to far longer than 8 hours of arduous work for the available manpower, practically round the year.

Ever increasing VIP bandobust and VIP security work Providing bandobust during VIP visits to their jurisdiction and in the programmes attended by VIPs, is a frequent chore to be performed by most police stations, over and above all other normal duties. This is in addition to the work of providing security to VIPs, whose number is ever burgeoning. Increasing magnitude and complexity of crime work The ever-rising criminal activities with growing variety and complexity need a lot of time and resources of the police to deal with them effectively. The problem is compounded by inadequate availability of scientific aids for investigation, as also non-availability of legal guidance and assistance to the police. This makes the crime investigation much more time consuming.

Shortage of manpower in police stations While shortage of manpower has been a perennial problem with the police in India in general, it is particularly so in police stations, which are the basic units of policing. Increase in manpower strength in police stations in the post- Independence period has been disproportionately low, compared to the growth in the population, crime rate, law and order workload and other police responsibilities and the available meagre manpower has had to shoulder the additional burden. Increasing complexity of crime and host of law and order problems have added the stress and strain of police personnel. All these have resulted in longer hours of arduous, strenuous and stressful work for personnel, far in excess of the normative 8-hour work day. It is an irony that even public holidays only bring more work for them. They have also to forego their weekly off quite often.

Disorganised functioning of police stations The existing somewhat disorganized work processes in police stations, which are both cause and effect of the work overload, also lead to avoidable wastage of manpower. SHOs are usually so overburdened with work and responsibilities that they hardly have any time left for advance planning. Even the task of distribution of duties among the police station staff is generally delegated to the Station Writer/Moharriar/ Munshi/Chitta Munshi. This often leads to absence of multi- tasking and deployment of right person for the right job, besides causing other problems. Long and irregular hours for staff, in fact, adds to the chaotic ways of police station functioning. Case study of the successful initiative of Kerala Police in introducing 8-hour duty system, undertaken as part of the current project, found a large majority of SHOs reporting that their own working had become more organized after the introduction of the new duty regime.

Diversion of manpower on 'attachments' and other duties not related to police station functions The unhealthy practice of diverting manpower from police stations to higher formations, to make up for

shortage of staff in those units, also adds to the workload of the remaining staff of those police stations. Such "attachments" are often necessitated on account of non-sanction of the required manpower in superior offices. For instance, our case study of Delhi Police brought out that, from a number of police stations, staff had to be deputed on "attachment" to the offices of DCPs and ACPs to man 'RTI Cells', 'Legal Cells', 'Parliament Questions Cells', etc., which have fairly heavy workload yet with no sanctioned staff. Similarly, very often personnel from police stations had to be diverted on prisoner escort duty, due to shortage of manpower in the Armed Reserves. Inadequate infusion of technology and non-availability of technological tools / aids Technology, among many benefits it offers, is a proven resource for economizing on manpower. Unfortunately, the progress of harnessing its full potential in the police functioning in our country has been slow and tardy. Use of computers is limited and even the work of record maintenance is still done manually in most of the police stations. This results in a lot of repetitive work. For instance, case study of Delhi Police brought out that in the absence of computerization of records, such as Malkhana registers, a lot of P.S. staff time was being wasted in bringing forward a very large number of entries in those records, year after year. Similarly, provision of personal computers / Laptops to investigating officers could help in speeding up investigation of cases by way of providing them instant access to databases, as also generating different reports. Kerala Police, in their successful endeavour of putting in place the 8-hour duty regime for police station personnel, have gainfully harnessed several technological means, leading to economizing on manpower.

Courtwork processes Both the processes of courts and those relating to courtwork in police stations are archaic and lead to wastage of PS staff time. SHOs and investigating officers, thus, end up attending the courts unproductively, when the cases are merely adjourned due to one reason or another. Avoiding this kind of wastage is not in the hands of the police. However, in handling court-related work by police stations, wastage of manpower can certainly be avoided by improvising on the processes. For instance, Vijayawada Police, in an innovative effort, integrated the courtwork of all its police stations into a centralized Court Liaison Cell for the entire Commissionerate. This new Courtwork Monitoring System is supported by a computerized web-based application. The system is saving manpower deployed on courtwork significantly while also contributing to noticeable improvement in the quality of courtwork. A more detailed account of this system is given in Chapter 9. **Other factors** Among other factors that cause avoidable wastage of time for police station personnel are:

- (i) Repetitive demands of information and data from departmental superiors, courts, the National / State Human Rights Commission and other statutory bodies.
- (ii) Pressure - at times genuine, at others not so genuine -
to perform a particular task with great urgency.
- (iii) Inadequate sensitivity of seniors to subordinates need for rest, recuperation and recreation.

Systems of compensation for extra work Information was solicited from various state police organizations, in the course of the current study, on the details of compensation (monetary or otherwise) available to police personnel for extra hours of working. From the replies received, it would appear that the police station staff in a majority of States and Union Territories are paid one month's additional pay in lieu of working overtime, as also on holidays and during their weekly off days. Among the states where this system of compensation is in vogue are Arunachal Pradesh, Haryana, Himachal Pradesh, Manipur, Meghalaya, Punjab, Uttarakhand, Uttar Pradesh, West Bengal and Delhi, besides the Union Territories of Andaman & Nicobar Islands, Lakshadweep, Puducherry.

In Himachal Pradesh, over and above one month's extra pay, police personnel of the ranks of Constables to Inspectors are allowed to avail 15 days of 'special leave' along with travel concession in Himachal Road Transport Corporation buses. Rs.140 is deducted from the salary of the personnel for the purpose every month.

In Gujarat, the staff are allowed compensatory leave for each holiday foregone by them. Maharashtra Police give 'refreshment allowance' of Rs.700/- per month per head to constables, naiks and head constables, and Rs.840/- to staff in the ranks of Sub-Inspectors and ASIs for performing duty for more than 10 hours a day. In Tamil Nadu, the staff members who are not able to avail their weekly off are paid an allowance of Rs.200/- for each such foregone off day.

States like Assam, Gujarat, Karnataka, Mizoram and Tripura, however, reported that there is no system of compensation - monetary or non-monetary - available to police station personnel in their states.

The overall picture of the compensation systems in practice is anything but satisfactory. Even one month's additional salary is hardly an adequate compensation for slogging day in and day out all the year round. Shift systems currently in vogue Information on the details of shift system of work, if any, in vogue (formally or informally) was also sought from the police organizations of various States and Union Territories. From the details so available, the following picture emerges:

No shift system as such is followed in the States of Assam, Arunachal Pradesh, Chhattisgarh, Gujarat, Haryana, Himachal Pradesh, Manipur, Uttar Pradesh, Uttarakhand, West Bengal and the Union Territory of Andaman & Nicobar Islands.

In Andhra Pradesh, Karnataka and Tamil Nadu, the State Police Manuals prescribe different shift systems for urban, semi-urban and rural police stations. However, during the periods of work pressures, the system is either given up or modified suitably.

In Meghalaya, 8-hour shifts are informally in vogue in some districts like East Khasi Hills, Jaintia Hills and South Garo Hills.

In Punjab, a 2-shift system (0800-2000 hrs. and 2000- 0800 hrs.) is informally followed in the Police Commissionerates of Jalandhar, Amritsar and Ludhiana cities, and some of the districts. In the remaining jurisdictions, no shift system is followed.

In Delhi, shift system is followed only for some duties, though in different shift patterns. Thus, Duty Officers, and General Diary Writers perform duty in 3 shifts; Reception Desk, Women Help Desk, Picketing duty, emergency duties, etc., are manned on 2-shift basis; CIPA staff and drivers also perform duty in 2 shifts; station sentry duty is performed in 4 shifts.

In LakshawEEP, normal duty time for constabulary is generally 8 hours. Shift system has been introduced for duties which require round-the-clock functioning.

In Puducherry, shift system is in vogue only for the staff on beat duties and sentry duties.

It is, thus, clear that barring a few exceptions, shift system in police station functioning is not formally in vogue in most jurisdictions. But in many States/UTs or parts thereof, informal shift systems of different patterns have been introduced, and the same are being followed on an ad hoc and off and on basis. This picture is also clearly borne out by the responses to the survey conducted as part of the current study. Legal provisions relating to duty hours for working classes Legal provisions to regulate the length of duty hours for working classes exist in a large number of countries. There are also international conventions and other instruments, laying down norms and rules for work hours and other working conditions, which are required to be followed by countries which ratify such conventions/instruments.

Universal Declaration of Human Rights, adopted in 1948 by the United Nations, deals with the subject in its Articles 23 and 24. Article 23 provides for right of everyone to 'just and favourable conditions of work'. Article 24 stipulates everyone's 'right to rest and leisure, including reasonable limitation of working hours and periodic holidays with pay'. All Member- States of the United Nations Organisation, including India, have an obligation to protect these rights in respect of all their citizens, naturally including those working in police organizations.

The International Labour Organisation (ILO) of which India is a founding Member, has, over the years, elaborated several conventions and declarations aimed at regulating the working conditions of labour and other working classes, including their work hour limits. The ILO's database of Working Time Laws is a comprehensive source of information on national working time laws of more than 100 countries.²⁵ This database covers all the main elements of working regulations, including hour limits, overtime work, rest periods, public holidays, annual leave, and so on.

The ILO instruments, relevant in our context, include:

1. The Hours of Work (Commerce and Offices) Convention, 1930, extending the 48-hour working week to workers in commerce and offices.
2. The Forty-Hour Week Convention, 1935, establishing a new standard of the 40-hour working week.
3. The Weekly Rest (Commerce and Offices) Convention, 1957, prescribing at least 24 consecutive hours of rest each week.
4. The Holidays with Pay Convention, 1970, stipulating an annual paid holiday of a specified minimum length.
5. The Workers with Family Responsibilities Convention, 1981, prescribing that each Member-State shall make it an aim of national policy to enable persons to engage in employment without being subject to any conflict between their employment and family responsibilities.

In pursuance of the ILO conventions, statutory normal hours of work of various classes of workers have been reduced gradually from 48 hours to 40 hours in a large number of countries. And, a 40-hour week is now the most prevalent standard.

The international standards and legislations in a vast majority of countries now also specify a limit on the number of working hours beyond which overtime payments are to be made. There are additional limits on overtime hours.

Weekly hour limits make a substantial contribution towards preserving workers' health and permitting them to strike an acceptable balance between paid work and domestic as well as other responsibilities. The dominant rationale of such limits has been to ensure adequate non-work, or 'leisure' time, for workers. The 40-hour limit contributes to a broad range of such objectives, including towards advancing work-life balance.

Weekly rest also is among the most universally accepted elements of working time laws, and almost all countries mandate at least one rest day for all working classes.

According to Sangheon et al, working time policies have long been recognized as having a role in improving productivity. Decent working time arrangements, therefore, need to fulfill five interconnected criteria. They should (a) preserve health and safety of workers, (b) be family friendly, (c) promote gender equality, (d) enhance productivity, and (e) facilitate worker choice and influence over working hours.

Legal provisions for working hours specific to Police United Kingdom After the advent of the Working Time Directive of the European Union, the police forces in the U.K. have appropriately modified their respective police regulations to bring the working hours of their personnel in tune thereto. United States of America The subject of working hours of the police is covered under section

3 (s) (1)(c) of the Fair Labour Standards Act (FLSA), which is a federal statute covering all employees of the federal and state governments across the USA. The provisions in this section are majorly concerned about the payment of compensation to law enforcement officials for working overtime rather than stipulating a limit on working hours. The FLSA requires payment of overtime pay to employees at no less than one-and half times their regular rates of pay for all hours worked in excess of 40 hours in a work-week. As regards daily or weekly rest periods, the Act specifies that an employee be given compensatory time, at a rate of not less than one-and- half hours for each overtime hour worked, in lieu of cash overtime compensation. Police personnel may accrue up to 480 hours of such compensatory time.

South Africa In South Africa, Regulation 31 of the South African Police Service Employment Regulations authorizes the Police Commissioner to determine the working hours of police personnel. In May 2002, the Commissioner, after consultations with various unions, issued orders stipulating that (a) the ordinary hours of work of any employee shall not be more than 40 hours per week; (b) the daily hours of work shall not be more than 8 hours per day for those employees who render administrative duties; and shift duties for the rest will be performed in either 8 hour or 12 hour shifts.

India In India, no specific law seems to contain provisions relating to working hours for police personnel. However, the Constitution of India itself recognizes the concept in its Article 42, under "Directive Principles of State Policy". This Article specifically enjoins upon the state to make provision for securing 'just and humane conditions of work'. The Constitution also emphasizes that these principles are 'fundamental in the governance of the country' and that 'it shall be the duty of the state to apply these principles in making laws'.

The right to just and favourable conditions of work is also covered in the case law through judgments of the Supreme Court of India in several cases. In *Daily Rated Casual Labour v. Union of India*, the Supreme Court in its judgment held that the right to just and favourable conditions of work was among the rights which had to be ensured by appropriate legislation and executive measures.

In *Vishaka v. State of Rajasthan*, the Apex Court emphatically stated that the right to work with dignity is a universally recognized basic human right and that the common minimum requirement of this right has received global acceptance.

In *Dharwad District PWD Daily Wages Employees v. State of Karnataka*, the Supreme Court again observed that the right to just and favourable condition of work, among some other similar rights, has to be ensured by appropriate legislation and executive measures.

In *C.E.S.C. Ltd. V. Subhash Chandra Bose & Ors.*, the Apex Court held that just and favourable conditions of work implies to ensure safe and healthy conditions for workmen."

35. The study has summed up the manpower norms for police stations in India as under:-

"To sum up:

The foregoing review of the existing scenario of ground situation as also of the available reports of various studies conducted from time to time by expert commissions/ committees and individuals clearly indicates that the subject of fixing manpower norms for police stations in a scientific manner has, by and large, proved elusive to police organizations and the governments so far. Barring a smattering of honourable exceptions, there is little evidence of any systematic exercise having been taken up to arrive at appropriate yardsticks, even in the period following the recommendation (1981) of the National Police Commission for operations research to evolve the norms and yardsticks. The only scientific exercises are represented by the Saraf study in the context of Maharashtra Police, the A.F. Ferguson study of Kerala Police, and, to some extent, the McKinsey study of requirements of police stations in Maharashtra. The studies of Saraf and McKinsey, however, do not take into account shift functioning in police stations, in working out manpower norms.

It is high time the matter is systematically taken up by all the States, duly taking into consideration the requirement of shifts functioning of police stations as also the different ways and means of economizing the manpower requirement by way of exploring means such as business process re-engineering, multitasking, the scope of outsourcing some of the non-core and non-statutory functions of police stations and infusion of technology, wherever feasible.

36. In Chapter 7 of the report, the analysis and discussion of survey results has been made including adverse impact of existing pattern of duty hours as under:-

"For ascertaining the present status of actual extent of duty hours of police station personnel, status of avilment of weekly offs by them, and the frequency of their being recalled to duty during their off time/days, as also for obtaining the views and opinions of stakeholders on other aspects of the research study, field survey was conducted by administering three different questionnaires, one each for (i) police station staff other than SHOs (PCs, HCs, ASI/SIs), Station House Officers (SHOs), and (iii) their supervisory officers (DySP/ACP/District SP/DCP, etc.), structured after detailed consultation with some senior serving and retired police officers, as also academic experts in the ASCI. Copies of the questionnaires are placed at Annexure - 3.

Adverse impact of existing pattern of duty hours It shows that 79.2% respondents among police station personnel asserted that the present regime of long and irregular working hours was not found convenient by them for attending to their personal / family needs and social commitments. More than 82% of SHOs also either found the current duty hours not convenient in facilitating personal and social needs of their staff, or preferred not to answer this question.

37. The report has also discussed in the same chapter the Current Duty Hours Leading to Health Problems as under:-

"Current duty hours leading to health problems It shows that 74% of police station staff felt that the present working hour arrangement was leading to various kinds of health problem for them. Significantly, 76.25% of SHOs also answered this question in the affirmative."

38. According to the report, 89.35% SHOs and other overwhelming majority of supervisory officers from across all the regions stating that it would improve efficiency.

39. Chapter 8 deals with national requirement of manpower for shift functioning in police stations as under:-

"It is imperative that manpower availability in any organization has to be commensurate with its workload. The available manpower in police stations in India is inadequate. This is borne out by the inordinately long working hours for the staff. Most of the additional manpower requirement for introducing the shift system, in fact, manifests in the long duty hours being currently put in by the police station staff. The survey conducted for the study brings out the extent of this malaise. The study adopted two-fold approach for estimation of the manpower requirement for operating shift system in police stations.

The first approach was to calculate the additional requirement of man-hours and man-days from the extra hours of daily duty being put in by staff, along with the weekly offs foregone by them.

In the survey, SHOs, who are the key functionaries of the police stations, were asked to indicate their considered assessment of extra manpower requirement (rank-wise) for shift functioning in their respective police stations. The second approach was to use this information in estimation.

In addition to these two methods, assessment of manpower requirement could also be broadly made from the action research conducted in a few police stations in Madhya Pradesh.

Requirement based on current work overload shouldered by police station staff
Estimation of extra man-days required, based on average duty hours being put in by the existing staff, is presented in the Tables 1-4 below:

Table 1 Extra man-days required to make up for longer than 8-hours duty in a day put in by staff As per SHOs' responses Length of Average Extra Percentage Extra man- Equivalent duty hours hours of hours put of hours put in no. of man-

duty in responses days @ 8

					hours per man-day
Up to 8 hours	-	-	9.35%	-	-
8-10 hours	9hrs.	1 hour	22.7%	1X22.7=22.7	2.8
11-14 hours	12.5hrs.	4.5 hrs.	37.65%	4.5x 37.65= 169.4	21.2
>14 hours	15 hrs.	7 hrs.	30.4%	7x30.4=212.8	26.6
Total				404.9	50.6

Additional requirement of manpower = 50.6% of the existing strength Table 2 As per Supervisory officers' responses Length of Average Extra Percentage Extra man-Equivalent duty hours hours of hours put of hours put in no. of man-

	duty	in	responses		days @ 8 hours per man-day
Up to 8 hours	-	-	11.85%	-	-
8-10 hours	9hrs.	1 hour	12.2%	1x12.2=12.2	1.5
11-14 hours	12.5hrs.	4.5 hrs.	52.3%	4.5x 52.3= 235.35	29.4
>14 hours	15 hrs.	7 hrs.	23.7%	7x23.7=165.9	20.7
Total				413.45	51.6

Additional requirement of manpower = 50.6% of the existing strength Average of 50.6% +51.6%= 51.1% Going by the SHOs' responses on extra man-hours put in by the existing staff, we would need additional 50.6% of the current staff strength to operate 8-hour shift. From the responses of supervisory officers, the requirement works out to 51.6% of the current strength. This is a remarkable overlap in the two response sets about the additional manpower need.

SHOs and SOs are closely associated with police station functions though at different levels. To add to this, the responses coming from a widespread sample reflect an all India picture. Taking the average of the two, the extra manpower requirement for 8-hour duty per day can be reckoned as 51.1% of the current strength."

40. There is emphasis on Infusion of Technology and Outsourcing of Non-Core Policing Functions as under:-

Infusion of technology "Technology is a proven tool for economizing manpower and other resources as well as efficiency enhancement. It is of special significance to an organization like the police which is most of the time hard-pressed for resources including the human resource. Internationally, police have been among early users of technology in their functioning. Use of radio communication by the police, for instance, dates back to the early decades of 20th century. Lie detectors came in vogue almost at the same time, and so on. Since then, police practitioners in many countries have increasingly been relying on technology in efficient performance of their job, without having to deploy too much of other resources. Computer-aided dispatch system, on-line offence reporting, automated fingerprinting system etc., are but a few examples of pervasiveness of technology in police organisations. Indeed, the degree of the same varies from country to country.

In India, police functioning still suffers from a significant technology gap. Many technological devices are known to exist, which can help the police perform several of their tasks with greater efficiency, while also economizing the requirement of scarce manpower and other resources. But, for many reasons, even technologies readily available off the shelf in the market have, if anything, only slowly been adopted into police operations. Availability of sufficient funds, has no doubt been an impediment but that certainly is only one part of the problem. Another major problem is the absence of technology- savvy and trained personnel on the staff of most police units. For example, many units, including police stations, having computers seem reluctant to use them for even their routine tasks, let alone for higher end applications. Similar is the fate of CCTV camera systems in many police units equipped with the same.

Computerisation in public services was almost pioneered in India by the police organization, with the third generation TDC 316 computers having been provided to a large number of states. Since then several initiatives have been introduced to leverage Information Technology in police functioning. These include the Crime-Criminal Information System (CCIS) and Computerized Integrated Police Applications (CIPA), both initiated by the NCRB, as also several state level applications like the e-COPS of Andhra Pradesh, Police I.T. of Karnataka, Thana Tracking System of West Bengal etc. In 2008, a comprehensive integrated application, the 'Crime-Criminal Tracking Network System' (CCTNS) was sponsored by the Government of India as a Mission-Mode project under the National e-Governance Plan. The concept envisages a nation-

wide networked environment for sharing real time crime and criminal information across more than 15000 police stations and nearly 6000 higher police functionaries in the country. To establish connectivity between different police units, dispersed all over the country, another scheme of communication network, named POLNET, was

launched quite sometime ago. Unfortunately, the progress of implementation in all these schemes has been rather slow. Police organizations have, thus, not yet been able to fully reap the benefits of these technological initiatives.

Technology in many fields has advanced by leaps and bounds. It can metamorphose the way policing is done and at the same time can enormously help the police economise their manpower. From micro computers to drones / UAVs in the sky, technology abounds with all its potential.

Tablets and smart phones can give instant access and ability to disseminate important information from anywhere any everywhere, thereby saving a lot of time of police officers. GPS technology can help in pinpointing the location of a distress call and determine the shortest, fastest and safest route to it, enabling the police to reach out for help more speedily. It can also be used in crime analysis to identify the trends in crime locations and help plan for preventive measures. Drones/UAVs are law enforcement's eyes-in-the- sky. They can perform surveillance and other tasks that police officers manually cannot. They can provide real-time information about crimes and dangerous situations as they unfold. This can help the police better plan and deploy their resources. Drones/UAVs can also capture video images of crimes and law and order situations to provide crucial evidence in future court proceedings. Biometrics is useful in multiple ways - from data security to suspect identification. Its use by police agencies abroad is rapidly increasing. DNA databases and software helps reduce the time and backlog in solving crime.

The above are but a few examples of how very useful technology is for efficient and manpower-economical policing. Indeed, technology is invaluable as a force multiplier that improves efficiency, effectiveness, as also help save time and manpower of the police.⁶⁴ It is, therefore, essential for police officers to stay current with various technological advances. For this, indeed, they need to have working knowledge of what such technologies can do for improving the efficiency and speed in police work."

Outsourcing of non-core policing functions "Outsourcing refers to transferring of certain activities identified as non-core functions of an organization to an outside entity. It is a dynamic management strategy, now commonly adopted by organizations to conserve their manpower for their own core functions, by transferring some or all of their non-core functions to external entities. This enables them to put their own limited resources to use in better accomplishment of their core functions. The concept is particularly relevant for the police organizations in India, reeling as they are under tremendous manpower crunch. Many functions and duties performed by police stations in India, as elsewhere, do not require any specialized skills, knowledge or capabilities of trained police manpower. There are also tasks that are either far removed or only remotely connected with civil policing. For many such functions and duties, outsourcing can be an effective solution to ease the strain on the limited manpower available with police stations.

Outsourcing, as a management strategy, was initially conceptualized in the private sector. It has since become more or less a norm in private sector organizations and is increasingly being adopted by public sector enterprises as well. Outsourcing police functions In commercial enterprises, the option of outsourcing is considered primarily for reasons like cost saving or improvement in quality of goods or services to meet market requirements, etc. Policing cannot, however, be treated as a commercial good or service, whose performance is to be assessed on the basis of cost considerations alone. The following important factors, therefore, have to be kept in view while opting for outsourcing police functions. Policing - a sovereign responsibility Providing safety and security to the people is a sovereign responsibility. So, while individual non-core functions of the police can be considered for outsourcing, the overall responsibility for efficient policing cannot be outsourced. Quality of service When any task is outsourced, it has to be ensured that the quality of service provided does not take a hit. Apart from the quality of the service, the completion time of an outsourced task is also important.

Legal aspects Many of the non-core policing functions are mandated by law, or rules and regulations Offloading of such police station functions would require appropriate amendment in the law or the rules, as the case may be.

Basic principles of Outsourcing While considering the option of outsourcing in the police organization, the following basic principles have to be kept in mind:

- (1) Outsourcing is neither appropriate nor an advisable option for all functions. Only non-core and routine functions can be outsourced.
- (2) A key issue to be resolved in the process of adopting outsourcing is therefore, the determination of core and non-core functions of the police station. (3) Many functions performed by the police are sovereign or inherently government functions, which cannot be outsourced.
- (4) Once the decision about outsourcing any functions has been taken, the objective and scope of outsourcing has to be clearly defined in each case.
- (5) There has to be a mechanism in place for regular evaluation of the effectiveness of outsourcing.

Identification of performance indicators is also necessary to assess the success or otherwise of outsourcing. (6) The organization must have adequate level of in-house expertise and trained staff to supervise outsourced services.

Methods of outsourcing for police organizations Outsourcing of police functions can be achieved by using three alternative methods: (i) Civilianisation, (ii) Privatisation, and (iii) Public-private Partnership.

Civilianisation means direct replacement of police officers from certain jobs by civilians, who are neither recruited and trained as police officers nor legally empowered as such. Increasingly, the world over, the police organizations are experimenting with a diverse mix of volunteers, retired police officers, part-time officers, or even hiring full time civilian staff on time-specific, flexible contracts.

Privatisation means entrusting some police functions to private personnel or private security agencies against some remuneration or compensation.

Public-Private Partnership is a contractual agreement between a public service organization and a private entity to share their skills and assets for delivering a service or facility for public use. The responsibility and rewards are also appropriately shared between them.

Experiences of police organizations abroad Outsourcing as a means of economizing on sworn manpower, has been adopted by many police organizations in different parts of the world. Police functions chosen for outsourcing vary from jurisdiction to jurisdictions and include guarding of public premises and buildings, court security, prisoner custody, video surveillance, traffic and parking control, radio dispatching, maintenance of computer and communications equipment, training, etc. Some examples of the outsourcing experiences of a few countries are briefly mentioned below.

In the United States of America, in Miami Beach, Florida, the police hire private security officers to guard public buildings and thereby save 30 percent of the cost to hire and train additional police officers to secure those buildings.

The cities of Atlanta, Georgia, California, Hollywood, Maryland, Chelsea, Massachusetts, etc., have outsourced some aspects of parking enforcement.

In San Francisco, licences to patrol beats have been given to private security providers, who engage local residents as private police officers called 'specials'. They make arrests, conduct investigations, and register traffic offences, etc. and are accountable to the regulatory authority of the police commission, as per contractual obligations.

Williamston, Michigan has a volunteer reserve programme to supplement the police. These volunteers, many of whom have a plan for career in police work, work alongside a regular police officer. They undertake bike patrols, police special events and take crime prevention measures. They are vested with the authority to enforce law and make arrests. However, they do not enjoy legal protection normally available to police officers, like under sections 45 and 197 of our Cr.P.C.

In the United Kingdom, the Police Reform Act, 2002 has formalized various modern concepts of policing and the private sector has thus begun to make significant contributions to policing. The Act of 2002 has also popularized the concept of 'extended police family', which enables participation by retired or part-time police officers, special constables, local authority wardens, and private sector security patrols, in enforcing law and keeping order. Special constables are volunteers with full

police powers. They participate in patrolling and other crime reduction initiatives. They work for a minimum of four hours a week, normally in the evenings or weekends. They wear uniform, are suitably trained, and are compensated with locally funded allowances.

The Police Reform Act of 2002 also authorizes the police to employ Community Support Officers (CSOs) from among community volunteers on fixed-term contracts. The primary functions of CSOs, who are vested with limited police powers, are to provide visible reassurance patrol and deal with low-level disorder and anti-social behaviour. They also gather valuable evidence following major incidents due to their intimate knowledge of the local communities. They are used as Traffic Wardens as also maintaining order at public events and providing support to police officers in other situations.

The U.K Criminal Justice Act, 1991 provides for private policing to take responsibility of the maintenance of order in court rooms. It also provides for privatization of police training.

The U.K. also has a Volunteer Cadet Scheme under which those interested in the police service in future are enlisted. These volunteers are deployed to monitor the CCTV system in police stations or used in crime analysis. They also man the front counters of police stations, besides rendering assistance to police station staff in administrative etc. functions.

Police in Netherlands use volunteer police officers for basic policing tasks. More than 2000 civilian volunteers active in Netherlands are said to have not only increased the police strength but also strengthened the bonds between the police and the communities.

In Ireland, the police use civilian detectives, who contribute more than 10 per cent of the total force. In addition, there are civilians employed by the Department of Justice for police duties.

In New Zealand, police chiefs are authorized to hire 'temporary constables' to fingerprint prisoners. Civilians have also been employed to operate the police dispatch system as well as to operate speed cameras.

The South African Police Service (SAPS), which faced a situation of crime explosion after the first democratic election in 1994, resulting in mushrooming of private security agencies, decided on involving the private security sector in policing tasks, even through outright outsourcing of some police functions to such private entities. The police functions that were thus outsourced included forensic and specialized investigations, guarding of government buildings, transportation and guarding of prisoners, court orderly duties, VIP protection, impounding of vehicles, I.T. services and administrative functions like fleet management, maintenance of police buildings, catering, etc. Interestingly, sections of middle- level police officers opposed the move to outsource some of these functions on the ground that the police could lose control over such functions. This led to a controversy on outsourcing for some time. Finally, South African authorities concluded that outsourcing was to be seen as a means by which uniformed personnel could be released from their desk bound jobs and other non-core functions so that they could concentrate on the core police jobs.⁸⁰ After much debate and deliberations, the functions that were identified for outsourcing

were: (i) guarding of government and police buildings, and managing access control to SAPS buildings, (ii) repairs and maintenance of police buildings, (ii) fleet management, including maintenance and repairs of police vehicles, (iv) guarding and maintenance of seized vehicles in vehicle pounds,

(v) maintenance of I.T. hardware and support for software applications, (vi) cleaning, gardening and catering services in all police stations and other police units, and (vii) crew and maintenance personnel for police aircrafts. Outsourcing experience in police organisations in India There are very few examples of outright outsourcing of non-core functions being adopted by police organizations in India. It is only of late that the concept of hiving off of some non-core functions through outsourcing has come to be accepted.

The States of Maharashtra and Andhra Pradesh, in view of the growing pressure on their police forces, have constituted specialized forces, christened as 'Maharashtra Suraksha Dal' and 'Special Protection Force' respectively, for providing security and protection to police undertakings of the State and Central governments, local authorities, banks and other vulnerable establishments or premises, located in the state. These special forces have been created on a model that makes them self-sustaining, since the entire cost of their maintenance is borne by the host establishments. Besides relieving the police forces of the extra burden, these forces also bring to bear on their job the advantage of professional specialization. Besides, their deployment remains uninterrupted and is not disturbed during the periods of heavy VIP bandobusts, crime waves and long drawn public disorder situations.

In Hyderabad city of Andhra Pradesh, certain outsourcing experiments of Ramgopalpet P.S. during 2002-03, showed significant success in the area of outsourcing of certain non-core policing functions. These were:

Manning of reception desk at police station:

The job of manning the reception desk at the police on the round-the-clock basis, which required deployment of three constables, was outsourced to a contractor, who deployed three persons of his own to function in three shifts. They performed all the functions of the receptionist, including receiving visitors and complainants, recording their complaints, and so on, besides receiving all telephone calls and manning the EPABx of the police station. The contractor was paid one-third of the earlier expenditure per month in all, for the job, which earlier engaged three constables. The constables could be redeployed on more important core policing tasks.

Collection of dead bodies from Hussain Sagar Lake Recovery of nearly 100 dead bodies found in the Hussain Sagar lake in a year involved deployment of one or more staff members each time, besides an expenditure of approximately Rs.1,000-1250 in each case towards wages to labourers, photography and transportation of the body to the mortuary, etc. This 'non-core police function' was outsourced at a total cost of Rs.750/- per dead body, thereby saving not only the expenses but also economizing

on time spent by police station personnel on the job.

Typing of case diaries The typewriting work relating to case diaries, which used to be attended to by 3-4 constables, was often suffering from undue delays, in spite of engagement of some private typists on payment of considerable amounts from time to time. To improve the situation, the work was outsourced to a contractor, who employed his own typists, used his own computer printer, and stationary, all at a cost of Rs.8,000/- per month. This resulted in prompt clearance of all scriptory work relating to cases under investigation, including preparation of crime reviews and notes, while also saving the police station manpower engaged in this work.

Funding of all these outsourcing endeavours was taken care of by utilizing 'user charges', collected for providing bandobust for private functions, at rates fixed by the Government of Andhra Pradesh, which are made available to the police department for being used for professional purposes.

Outsourcing recommended by various Commissions/ Committees on Police Reform Some of the high-level Committees and Commissions on Police Reforms, appointed by the Government from time to time, recognizing the value of outsourcing, have recommended the same for police organizations in India, which have too many responsibilities and far too much of workload, to be shouldered by grossly inadequate manpower. Padmanabhaiah Committee on Police Reforms (2000) recommended that a number of functions which do not require the special capability and knowledge of police functions, can be outsourced so that the police can concentrate on its core functions. The Committee specifically listed out duties such as summons service and antecedent verification in the context of passport applications etc. etc., that should be outsourced or redistributed to other government departments or private agencies".

The Second Administrative Reforms Commission in its Fifth Report, devoted to Public Order, recommended setting up of a multi-disciplinary task force in each state to draw up a list of non-core police functions that could be outsourced in a phased manner.

The Model Police Act, 2006, elaborated by Soli Sorabjee Committee, contains, under its section 26(5), a specific provision for outsourcing of as many non-core police functions as possible, to enable police officers to concentrate on their core functions.

Current ground situation These recommendations notwithstanding, the ground situation, as revealed by the response of State DGPs to our letter dated June 30, 2011 does not hold out a very rosy picture. The practice of outsourcing appears to be almost non-existent in most states except for peripheral housekeeping functions in a few places.

State DGPs' views regarding functions amenable to outsourcing However, in responses to our query regarding the functions in respect of which outsourcing could be considered a feasible option, quite a long list of items were suggested by Directors General of Police of various states. Prominent among such functions were:

(1) Summons service, (2) Traffic regulation, (3) Guarding non-sensitive public and private buildings / premises, (4) Driving of police vehicles, (5) Dak runner duty, (6) Ministerial work in police stations, including maintenance of police station records, and (7) Maintenance and upkeep of police station building and premises, including running of the canteens in PSs Further, transfer of functions like escorting of prisoners and guard duty of jails to prison staff was suggested, except in high risk-prone cases.

41. It is evident from the findings of the scholarly worked out by the Administrative Staff College of India, Hyderabad, under the leadership of Mr. Kamal Kumar, IPS (Retd.) that there should be eight hours shift in the police stations to avoid adverse impact on the health and family members of the constables. The report has considered the shifting pattern at international level vis-à-vis Indian condition. The findings of the study are as under:-

"Long duty hours The analysis of survey data through SPSS along with chi- square statistics, reveals an eye opening picture. It brings out that nearly 90% of police station staff, across the states and across various police station types, presently work for more than 8 hours a day. Further, according to more than 68% of SHOs and over 76% of supervisory officers, staff members of their police stations have to remain on duty for 11 hours or more per day. 27.7% SHOs and 30.4% supervisory officers even reported that their staff worked for more than 14 hours a day.

As if this is not enough, 73.6% of police station staff indicated that they were not able to avail weekly offs even once a month. Though the SHO respondents were guarded in their responses on this aspect, yet nearly 60% of them confirmed that their staff were either not able to avail weekly offs even once in a month or could avail it, at the most, once or twice in a month.

What makes the situation even worse is that most (over 80%) of the staff are commonly recalled to duty during their off time, to deal with emergencies of law and order, VIP bandobusts or other works. Nearly a half (46.7%) of staff reported that they were called in for duty, on an average, for 8 - 10 times in a month. A majority of SHOs also confirmed this trend.

The situation of inordinately long and irregular working hours for police station staff is, thus, quite serious. Long and irregular work hours have multiple negative impacts on efficient policing, since weary, over-worked and over-exhausted personnel cannot be expected to put in their best in their work. Health impact of long hours The study establishes the resultant negative effects of the undue physical strain leading to

cumulative physical as well as mental fatigue for personnel. Nearly three-fourths (74%) of respondents among police station staff reported that the current working hour regime led to various kinds of health problems for them. A large majority (over 76%) of SHOs also felt that the current duty hour arrangement was deleterious to health of staff. Most of the specific health problems enumerated by the staff respondents in this regard fall in the domain of occupational hazards and can be directly attributed to long hours on job. Given the health care systems normally applicable to government employees, it could as well be that government expenses to treat these health consequences, along with the quality of man-hours lost due to their adverse effects, would cost the police organization much more than operating in shifts.

Social impact of long hours The study also brings out that the current duty-hour regime is not found conducive by police station staff for attending to their personal / family needs and social life and commitments. That a very large proportion (nearly 80%) of staff has averred so, needs to be taken a serious note of. These responses of staff, cutting across ranks, all age groups and educational qualifications groups clearly bring out wide-spread disenchantment with the existing working hour regime. This should ring alarm bells. An equally large number (82%) of SHOs also either specifically agreed with this or preferred to evade the question.

All this, in turn, takes a toll on the morale, motivation and self-esteem of staff. The overall frustration manifests itself in the offensive conduct and behavior with the public by many of them, which leads to erosion of societal image of the police and alienation of the public. Since public cooperation is an essential ingredient of effective policing, all this causes an enormous adverse impact on the quality of police service. Long hours and Maslow's hierarchy of needs Good professional policing, as articulated in the cries for police reform, requires cutting edge level police personnel to exhibit personal attributes like morality, lack of prejudice, problem solving capacity, creativity, spontaneity, and so on. These attributes fall in the realm of 'self-actualisation' needs in the Maslow's hierarchy of needs. Maslow asserts that this category of needs cannot fructify unless the needs lower down in the hierarchy are fulfilled, the relevant ones in the context of police personnel's life are sleep (physiological needs), security of health and of the family (safety needs), friendship and family (needs for love and belonging), and self-esteem, achievement, respect by others (esteem needs). It, thus, needs to be realised that the malaise of inordinately long work hour regime of police personnel, to a large extent, is the root cause of most of the ills dogging good and efficient policing. The problem needs urgent attention.

Perpetuation of such a working hour arrangement holds ugly portents in the short as well as long terms. In the short term, it adversely impacts the quality of day-to-day policing since overworked and overtired personnel are not able to perform to the best of their potential. Inability to maintain a healthy work-life balance affects their morale and motivation, impacting their performance further. The overall frustration

results in their rude and offensive behavior with the public. In the long run, the pent up disgruntlement can have an adverse impact on staff discipline and even more dangerous portents. Grueling and tedious work hour regime can also deter many otherwise right kind of individuals from making a choice for police profession, thus adversely affecting the quality of the manpower available for recruitment. All these points came to be highlighted off and on, in the group discussions and personal interviews conducted during the study. Shift system of working as an alternative To meet the requirement of efficient policing on 24x7 basis, shift system of working of police stations is an unavoidable imperative. An examination of the international scenario in this regard indicated that the modern police forces, the world over, have their police station working in shifts. In India, shift system of functioning is not recognized in the Police Manuals/Regulations of most of the states, the only honourable exceptions being Andhra Pradesh, Karnataka and Tami Nadu. However, in many areas, shifts of various kinds are informally in operation. But, the study reveals that in almost all cases, shifts, as contemplated, are not strictly adhered to, due to manpower shortage and heavy workload. This is so even in the states where the Police Manuals prescribe shift functioning.

Possible impact of shift system The study also attempted to gather the views and opinions of stakeholders at different levels of hierarchy about the likely impact of shift system, if introduced, on police functioning as also on the personal life of staff. An overwhelming majority (over 96%) of police station staff averred that 8-hour shift system would improve police work performance. A similarly large number (over 84%) of them further stated that it would not cause problems of any kind. Almost 90% of SHOs and more than 90% of supervisory police officers also expressed that shift system would improve the quality of policing. Significantly, such positive perceptions in favour of shift system pervade all regions of the country, all police station types, as well as all ranks, age groups, educational qualifications groups and length of service of respondents.

A vast majority (more than 95%) of police station staff and an equally large number (over 96%) of senior supervisory officers also felt that shift working would be more conducive for personal / family life of staff and their social commitments. 96% supervisory officers also opined that shift system would have a positive impact on the health of personnel of their police stations.

Such huge responses in favour of the shift system, and negative perceptions against the current duty hour regime, should leave no room for doubt that the existing chaotic work hour arrangement needs to be urgently replaced with an efficacious shift system of working with regulated hours of work.

Manpower requirement for shift system of functioning Introduction of shift system would inevitably require some extra manpower, with attendant cost implications. However, the improvement in the quality of policing that regulated hours of work

bring about, as established by our case study of the 8-hour duty system of Kerala Police, as also our action research experiment in five police stations of Madhya Pradesh and the case study of the discontinued attempt of Pune police, should make that extra cost a socially useful investment. This, coupled with heightened levels of morale and motivation of staff, would more than compensate the extra expenditure involved in augmentation of manpower.

Coming to estimation of manpower requirement for shift system, calculation for additional requirement of manpower to make up for extra hours of daily duty currently being put in by police station staff and the weekly offs foregone by them, arrived at in the study, works out the additional requirement to be 61% of the present sanctioned strength. This, however, does not take into account the time relating to staff being recalled to duty during their off time / days, which is difficult to calculate. As per the considered assessment of SHOs, elicited in the survey, the extra requirement for introducing an efficacious shift system would be 1.68 times of the existing sanctioned strength of police stations. This means an addition of 68% to the current sanctioned strength. The requirement as assessed by SHOs, more or less, tallies with the estimation based on rationalization of the inordinate workload of staff reflected in the extra man-hours now being spent by them on duty.

It is to be noted that the requirement of extra manpower would get appropriately reduced once measures like much- needed re-engineering of some work processes of police stations, greater infusion of technology in police station work, as feasible, introduction of other force multiplier mechanisms and outsourcing of some of the non-core policing tasks are taken. Some of the specific measures relating to all these aspects have been prominently suggested by respondents in the survey conducted as part of this study. With these and other measures brought out by the study, the requirement of extra manpower is estimated to remain in the range of 50% of the present sanctioned strength.

As matters stand now, the manpower sanctioned for police stations, per se, in the country is woefully small. Calculated on the basis of averages of NCRB data on classification of police stations by sanctioned strength, during 2013, the total manpower sanctioned for all police stations, put together for the entire country works out to the tune of 6,75,115. The total manpower strength of state police forces, as per 'Data on Police Organisations - 2013' published by BPR&D, was 22,09,027. That means the manpower sanctioned for police stations represents only about 30% of the total police strength. This ratio is highly unsatisfactory, given that police station is the cutting edge of policing. Augmentation of police station strength with some 3,37,500 personnel (50% of the present sanctioned strength) would take the ratio of police station manpower to a little over 45% of the total police strength in the States / Union Territories. This would be a more satisfactory state of affairs for ensuring efficient policing.

The extra country-wide requirement of just about 3,37,500 personnel for the introduction of shift functioning in police stations is by no means excessive.

In considering the question of augmentation of manpower, it also needs to be kept in view that the country presently has a very adverse police: population ratio, with just 145 police personnel sanctioned for the policing requirements of 1,00,000 of population. With the addition of 3,37,500 more personnel, as suggested above, the police : population ratio would become 173 per 1,00,000. This would still be below the United Nations prescribed norm of 222 police personnel per 100,000 of population.

The issue of augmentation of manpower for introducing shift system can be considered from yet another important angle. The current strength of women in police is a meagre 97,518, countrywide, as per Data on Police Organisations, as on 01.01.2013, published by BPR&D. This amounts to only 4.4% of total police strength in the country. There is a dire need to enhance this ratio in view of the requirement of greater number of women police personnel for better policing in general and to deal with crime against and committed by women as well as children in particular. Many states have already contemplated 30% reservation for women in police recruitments. States like Tamil Nadu, Uttarakhand and Gujarat and the Union Territories have already made public announcements to that effect. Thus, it is recommended that against the requirement of 3,37,500 additional personnel in police stations for the introduction of shift functioning, all recruitments should be limited to women only. This would take the ratio of women police to a more desirable level of nearly 20%. This step would then serve twin purposes of introduction of shift system in police stations as well as enhancing women's presence for better policing.

Conclusion The problem of inordinately long working hours of police station personnel is serious. The situation cannot be compared with the requirement of overtime work faced by employees in other government offices and establishments. For them, in most cases, it is an occasional requirement and not an all-365- day affair. Further, they are either paid adequate overtime allowance, or allowed compensatory off time in lieu of extra hours put in. Often, arrangements are also made for their transport, refreshment, etc. In any case, the overtime working for them is not so prolonged as to adversely affect the overall quality of their work output.

Shift system of functioning in police stations is absolutely imperative for efficient and people friendly policing. It would also improve the work-life balance for police personnel. The study clearly establishes that the implementation of 8-hour shift system is a functionally achievable objective, as brought by our case study of 8-hour duty system of Kerala Police, as also by the action research experiment in five police stations of Madhya Pradesh.

42. According to the observations of the second Administrative Reforms Commission, constables have become 'machines' carrying out the directions of their superiors with little application of mind or initiative. There is constant political interference in transfers, placements and crime investigation, long and difficult working hours, the menial duties they are often forced to perform as orderlies to senior officers, and the emphasis on brawn rather than brain in most situations. A constable devoid of dignity, lacking opportunities for vertical mobility, constantly pressurized by superiors and politicians, often not liked by the public and habituated to easy recourse to violence and force cannot generally be expected to sustain his/her self-esteem or acquire the professional skills to serve the citizens.

43. The constabulary is usually the first interface of the police with the public, any reform to be meaningful has to begin at this level. Radical improvements in the recruitment, training, emoluments, working and living conditions are essential to improve their morale, reduce their frustration and increase their professionalism.

44. The police is the primary agency of the criminal justice system which protects human rights.

45. The State Government should develop psychological tests for the police force. There should be constant evaluation of the performance, attitudes and behavior of all recruits during training.

46. According to the study undertaken at the behest of Police Research and Development, Govt. of India, as noticed hereinabove, it is mentioned that the study was conducted by the National Productivity Council, 1977 at the behest of the National Police Commission and it was established that the normal working hours of a subordinate police officer on public order and crime investigation duty ranged between 10 and 16 hours per day, seven days a week. There is pressure in the police force to provide VIP bandobust and VIP security work. The complexity of crime work, shortage of manpower in police stations, disorganized functioning of police stations, diversion of manpower on 'attachments' and other duties not related to police station functions, inadequate infusion of technology and non-availability of technological tools/aids. The police force should be provided one month's additional salary in lieu of working overtime, as also on holidays and during their weekly off days. The police force should adopt shift system.

47. Most of the health problems occurred due to occupational hazards attributed to long hours on job. The long duty hour takes a toll on the morale, motivation and self-esteem of staff. The overall frustration manifests itself in the offensive conduct and behavior with the public at times.

48. It is the duty cast up the State to make provisions for securing just and humane conditions of work under Article 42 of the Constitution of India.

49. Now, as far as Section 42 of the Uttarakhand Police Act, 2007 is concerned, it deals with the duty hours of the police officers. There is no separate duty hours provided for police personnel. The police personnel discharge regal functions to maintain law and order. Their conditions of service should also be improved. The police officers/personnel should work only 8 hours. There are very few promotional avenues to the police personnel. There is lack of proper housing facilities for the

police personnel. Their conditions of service are also not humane. They do not get sufficient rest leading to psychological problems. Their family members are not duly compensated when the police officer receives injuries or dies in the line of duty. There is no proper scientific training to the police personnel. The funds provided by the State Government, as noticed hereinabove, are very meager. The State Government has not created any corpus for welfare of the police personnel as recommended by One-Member State Police Reforms Commission, constituted in 2012. The increments are not given for acquiring higher qualification. The representation of the women in the police force is very low.

50. The term every police officer shall, for the purposes of this Act, be considered to be always on duty, and may, at any time, be employed as a police officer in any part of the State or outside it under Section 42 of the Uttarakhand Police Act, 2007, has to be interpreted in a reasonable and humane manner.

51. What it implies is that the police officer should be available for 24 hours but it does not suggest that he has to work uninterruptedly for 24 hours. The stress and strain is the same of police officer/personnel.

52. Accordingly, the writ petition is disposed of by issuing following mandatory directions:-

A. The respondent-State is directed to ensure that the police personnel do not work for more than eight hours at a stretch.

B. The State Government is also directed to pay at least forty-five days' extra salary to improve the conditions of service of the police personnel for undertaking the arduous duties.

C. The State Government is also directed to create corpus as per the recommendation of One-member State Police Reforms Commission, constituted on 13.04.2012 within a period of three months from today for the welfare of the police force.

D. The State Government is advised to undertake Housing Scheme for the police personnel for improving the living conditions of the police force.

E. The respondent-State is directed to make suitable amendments in the Rules by providing at least three promotions to police personnel throughout his career to remove stagnation and for improving efficiency.

F. The Police Department is directed to be liberal in granting leaves to the police personnel. The family members of the police force should be duly compensated in the eventuality of police personnel receiving bodily injuries, disability or death in the line of duty.

G. The State Government should recruit qualified doctors specifically for the police force.

H. The State Government is directed to constitute Special Selection Board for recruitment of police personnel for timely filling up the vacancies.

I. The State Government is directed to provide sufficient recreational facilities at police stations as well as police housing colonies including Gym and swimming pool etc. J. The State Government is directed to appoint in each district the psychiatrist to counsel the police personnel who are under tremendous pressure and strain.

K. The State Government is directed to ensure that the traffic police is given sufficient breaks while discharging their duties in summers by rotating them.

L. The Traffic Police should be provided masks to protect them from injurious gases and fumes while discharging traffic duties.

M. All the police personnel should be medically examined after every three months to assess their medical fitness.

N. The State Government is directed to ensure that the police stations work in shifts for efficient and people friendly policing.

53. Pending application, if any, also stands disposed of accordingly.

(Sharad Kumar Sharma, J.) (Rajiv Sharma, J.) NISHANT